

|                                                                                           |                                                                                           |                                                                                                                   |                            |                       |
|-------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------|----------------------------|-----------------------|
| <b>SOLICITATION, OFFER,<br/>AND AWARD</b><br><b>(Construction, Alteration, or Repair)</b> | 1. SOLICITATION NUMBER<br>19C02026Q0027                                                   | 2. TYPE OF SOLICITATION<br><input type="checkbox"/> SEALED BID (IFB)<br><input type="checkbox"/> NEGOTIATED (RFP) | 3. DATE ISSUED<br>8/102026 | PAGE 1 OF 81<br>PAGES |
|                                                                                           | <b>IMPORTANT</b> - The "offer" section on the reverse must be fully completed by offeror. |                                                                                                                   |                            |                       |

|                                                                                                   |                                                      |                                                                                                          |
|---------------------------------------------------------------------------------------------------|------------------------------------------------------|----------------------------------------------------------------------------------------------------------|
| 4. CONTRACT NUMBER                                                                                | 5. REQUISITION/PURCHASE REQUEST NUMBER<br>PR16179007 | 6. PROJECT NUMBER                                                                                        |
| 7. ISSUED BY<br>AMERICAN EMBASSY BOGOTA<br>CARRERA 45 NO. 24B-27, ATTN: GSO<br>BOGOTA<br>COLOMBIA | CODE<br>19C020                                       | 8. ADDRESS OFFER TO<br>AMERICAN EMBASSY BOGOTA<br>CARRERA 45 NO. 24B-27, ATTN: GSO<br>BOGOTA<br>COLOMBIA |
| 9. FOR INFORMATION<br>CALL:                                                                       | a. NAME<br>Sonia Rivera                              | b. TELEPHONE NUMBER (Include area code) (NO COLLECT CALLS)<br>601-275-2077                               |

### SOLICITATION

**NOTE:** In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (Title, identifying number, date)

Compound Cafeteria Canopy modernization

|                                                                                                                                                                                                                                                                                                                                                                                                                                                |                    |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|
| 11. The contractor shall begin performance within <u>10</u> calendar days and complete it within <u>90</u> calendar days after receiving<br><input type="checkbox"/> award, <input checked="" type="checkbox"/> notice to proceed. This performance period is <input checked="" type="checkbox"/> mandatory <input type="checkbox"/> negotiable. (See <u>          </u> ).                                                                     |                    |
| 12A. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS?<br>(If "YES," indicate within how many calendar days after award in Item 12B.)<br><input type="checkbox"/> YES <input checked="" type="checkbox"/> NO                                                                                                                                                                                                             | 12B. CALENDAR DAYS |
| 13. ADDITIONAL SOLICITATION REQUIREMENTS:                                                                                                                                                                                                                                                                                                                                                                                                      |                    |
| a. Sealed offers in original and <u>          </u> copies to perform the work required are due at the place specified in Item 8 by <u>16:00</u> (hour)<br>local time <u>08/31/2026</u> (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes<br>containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due. |                    |
| b. An offer guarantee <input type="checkbox"/> is, <input type="checkbox"/> is not required.                                                                                                                                                                                                                                                                                                                                                   |                    |
| c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.                                                                                                                                                                                                                                                                                    |                    |
| d. Offers providing less than <u>180</u> calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.                                                                                                                                                                                                                                                                                    |                    |

**OFFER (Must be fully completed by offeror)**

|                                                    |               |                                                                  |
|----------------------------------------------------|---------------|------------------------------------------------------------------|
| 14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code) |               | 15. TELEPHONE NUMBER (Include area code)                         |
|                                                    |               | 16. REMITTANCE ADDRESS (Include only if different than Item 14.) |
| CODE                                               | FACILITY CODE |                                                                  |

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within \_\_\_\_\_ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS



18. The offeror agrees to furnish any required performance and payment bonds.

**19. ACKNOWLEDGMENT OF AMENDMENTS**

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

| AMENDMENT<br>NUMBER |  |  |  |  |  |  |  |  |  |  |
|---------------------|--|--|--|--|--|--|--|--|--|--|
| DATE.               |  |  |  |  |  |  |  |  |  |  |

|                                                                        |                |                 |
|------------------------------------------------------------------------|----------------|-----------------|
| 20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print) | 20b. SIGNATURE | 20c. OFFER DATE |
|------------------------------------------------------------------------|----------------|-----------------|

**AWARD (To be completed by Government)**

21. ITEMS ACCEPTED:

|                                                                                  |                                       |                                                                                                                                                  |
|----------------------------------------------------------------------------------|---------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------|
| 22. AMOUNT                                                                       | 23. ACCOUNTING AND APPROPRIATION DATA |                                                                                                                                                  |
| 24. SUBMIT INVOICES TO ADDRESS SHOWN IN<br>(4 copies unless otherwise specified) | ITEM                                  | 25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO<br><input type="checkbox"/> 0 U.S.C. 2304(c)( ) <input type="checkbox"/> 1 U.S.C. 253(c)( ) |
| 26. ADMINISTERED BY                                                              | CODE                                  | 27. PAYMENT WILL BE MADE BY                                                                                                                      |

**CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE**

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |           |                                                                                                                                                                                                                                                                                                                                                     |                 |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|
| <input type="checkbox"/> 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return _____ copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work, requisitions identified on this form and any continuation sheets for the consideration slated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications or incorporated by reference in or attached to this contract. |           | <input type="checkbox"/> 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary. |                 |
| 30A. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |           | 31A. NAME OF CONTRACTING OFFICER (Type or print)                                                                                                                                                                                                                                                                                                    |                 |
| 30B. SIGNATURE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | 30C. DATE | 31B. UNITED STATES OF AMERICA, BY<br>.<br>.                                                                                                                                                                                                                                                                                                         | 31C. AWARD DATE |

STANDARD FORM 1442 (REV. 8/2014) **BACK****SBU - CONTRACTING AND ACQUISITIONS**

## TABLE OF CONTENTS

### SF-1442 COVER SHEET

- A. PRICING
- B. STATEMENT OF WORK
- C. PACKAGING AND MARKING
- D. INSPECTION AND ACCEPTANCE
- E. DELIVERIES AND PERFORMANCE
- F. CONTRACT ADMINISTRATION DATA
- G. SPECIAL TERMS AND CONDITIONS
- H. CLAUSES
- I. LIST OF ATTACHMENTS
  - Attachment 1: Scope of work
  - Attachment 2: Breakdown of Price by Divisions of Specifications
  - Attachment 3: Safety requirements for contractors and subcontractors
- J. INSTRUCTIONS ON HOW TO SUBMIT A QUOTATION
- K. EVALUATION CRITERIA
- L. REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

## SECTION A - PRICING

### A. PRICE

The Contractor shall complete all work, including furnishing all labor, material, equipment, and services required under this purchase order for the following firm fixed price and within the time specified. This price shall include all labor, materials, all insurances, overhead and profit.

|                                                                   |  |
|-------------------------------------------------------------------|--|
| Total Price (including all labor, materials, overhead and profit) |  |
|-------------------------------------------------------------------|--|

#### A.1 VALUE ADDED TAX

VALUE ADDED TAX (VAT). The Contractor shall include VAT as a separate charge on the Invoice and as a separate line item in Section B.

## SECTION B - STATEMENT OF WORK

The character and scope of the work are set forth in the contract. The Contractor shall furnish and install all materials required by this contract.

In case of differences between small and large-scale drawings, the latter will govern. Where a portion of the work is drawn in detail and the remainder of the work is indicated in outline, the parts drawn in detail shall apply also to all other portions of the work. Review the attachment #1 for complete information.

## SECTION C - PACKAGING AND MARKING

Mark materials delivered to the site as follows:

**US Embassy Bogota**  
**Carrera 45 # 24B-27**  
**Bogota, Colombia**

## SECTION D - INSPECTION AND ACCEPTANCE

The COR, or his/her authorized representatives, will inspect from time to time the services being performed and the supplies furnished to determine whether work is being performed in a satisfactory manner, and that all supplies are of acceptable quality and standards.

The Contractor shall be responsible for any countermeasures or corrective action, within the scope of this contract, which may be required by the Contracting Officer as a result of such inspection.

### D.1 SUBSTANTIAL COMPLETION

(a) "*Substantial Completion*" means the stage in the progress of the work as determined and certified by the Contracting Officer in writing to the Contractor, on which the work (or a portion designated by the Government) is sufficiently complete and satisfactory. Substantial completion means that the property may be occupied or used for the purpose for which it is intended, and only minor items such as touch-up, adjustments, and minor replacements or installations remain to be completed or corrected which:

- (1) do not interfere with the intended occupancy or utilization of the work, and
- (2) can be completed or corrected within the time period required for final completion.

(b) The "date of substantial completion" means the date determined by the Contracting Officer or authorized Government representative as of which substantial completion of the work has been achieved.

Use and Possession upon Substantial Completion - The Government shall have the right to take possession of and use the work upon substantial completion. Upon notice by the Contractor that the work is substantially complete (a Request for Substantial Completion) and an inspection by the Contracting Officer or an authorized Government representative (including any required tests), the Contracting Officer shall furnish the Contractor a Certificate of Substantial Completion. The certificate will be accompanied by a Schedule of Defects listing items of work remaining to be performed, completed, or corrected before final completion and acceptance. Failure of the Contracting Officer to list any item of work shall not relieve the Contractor of responsibility for complying with the terms of the contract. The Government's possession or use upon substantial completion shall not be deemed an acceptance of any work under the contract.

### D.2 FINAL COMPLETION AND ACCEPTANCE

D.2.1 "Final completion and acceptance" means the stage in the progress of the work as determined by the Contracting Officer and confirmed in writing to the Contractor, at which all work required under the contract has been completed in a satisfactory manner, subject to the discovery of defects after final completion, and except for items specifically excluded in the notice of final acceptance.

D.2.2 The "*date of final completion and acceptance*" means the date determined by the Contracting Officer when final completion of the work has been achieved, as indicated by written notice to the Contractor.

D.2.3 FINAL INSPECTION AND TESTS. The Contractor shall give the Contracting Officer at least five (5) days advance written notice of the date when the work will be fully completed and ready for final inspection and tests. Final inspection and tests will be started not later than the date specified in the notice unless the Contracting Officer determines that the work is not ready for final inspection and so informs the Contractor.

D.2.4 FINAL ACCEPTANCE. If the Contracting Officer is satisfied that the work under the contract is complete (with the exception of continuing obligations), the Contracting Officer shall issue to the Contractor a notice of final acceptance and make final payment upon:

- Satisfactory completion of all required tests,
- A final inspection that all items by the Contracting Officer listed in the Schedule of Defects have been completed or corrected and that the work is finally complete (subject to the discovery of defects after final completion), and
- Submittal by the Contractor of all documents and other items required upon completion of the work, including a final request for payment (Request for Final Acceptance).



## SECTION E - DELIVERIES AND PERFORMANCE

### 52.211-10 COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK (APR 1984)

The Contractor shall be required to:

- (a) commence work under this contract within ten (10) calendar days after the date the Contractor receives the notice to proceed,
- (b) prosecute the work diligently, and,
- (c) complete the entire work ready for use not later than Ninety (90) calendar days.

The time stated for completion shall include final cleanup of the premises.

### 52.211-12 LIQUIDATED DAMAGES - CONSTRUCTION (SEPT 2000)

- (a) If the Contractor fails to complete the work within the time specified in the contract, or any extension, the Contractor shall pay liquidated damages to the Government in the amount of **COP\$500,000** for each calendar day of delay until the work is completed or accepted.
- (b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Default clause.

### CONTRACTOR'S SUBMISSION OF CONSTRUCTION SCHEDULES

- (a) The time for submission of the schedules referenced in FAR 52.236-15, "Schedules for Construction Contracts", paragraph (a), is hereby modified to reflect the due date for submission as ten (10) calendar days after receipt of an executed contract".
- (b) These schedules shall include the time by which shop drawings, product data, samples and other submittals required by the contract will be submitted for approval.
- (c) The Contractor shall revise such schedules (1) to account for the actual progress of the work, (2) to reflect approved adjustments in the performance schedule, and (3) as required by the Contracting Officer to achieve coordination with work by the Government and any separate contractors used by the Government. The Contractor shall submit a schedule, which sequences work so as to minimize disruption at the job site.
- (d) All deliverables shall be in the English language and any system of dimensions (English or metric) shown shall be consistent with that used in the contract. No extension of time shall be allowed due to delay by the Government in approving such deliverables if the Contractor has failed to act promptly and responsively in submitting its deliverables. The

Contractor shall identify each deliverable as required by the contract.

(e) Acceptance of Schedule: When the Government has accepted any time schedule; it shall be binding upon the Contractor. The completion date is fixed and may be extended only by a written contract modification signed by the Contracting Officer. Acceptance or approval of any schedule or revision thereof by the Government shall not:

- (1) Extend the completion date or obligate the Government to do so,
- (2) Constitute acceptance or approval of any delay, or
- (3) Excuse the Contractor from or relieve the Contractor of its obligation to maintain the progress of the work and achieve final completion by the established completion date.

#### NOTICE OF DELAY

If the Contractor receives a notice of any change in the work, or if any other conditions arise which are likely to cause or are actually causing delays which the Contractor believes may result in late completion of the project, the Contractor shall notify the Contracting Officer. The Contractor's notice shall state the effect, if any, of such change or other conditions upon the approved schedule, and shall state in what respects, if any, the relevant schedule, or the completion date should be revised. The Contractor shall give such notice promptly, not more than ten (10) days after the first event giving rise to the delay or prospective delay. Only the Contracting Officer may revise the approved time schedule.

#### NOTICE TO PROCEED

(a) After receiving and accepting any bonds or evidence of insurance, the Contracting Officer will provide the Contractor a Notice to Proceed. The Contractor must then prosecute the work, commencing and completing performance not later than the time period established in the contract.

(b) It is possible that the Contracting Officer may elect to issue the Notice to Proceed before receipt and acceptance of any bonds or evidence of insurance. Issuance of a Notice to Proceed by the Government before receipt of the required bonds or insurance certificates or policies shall not be a waiver of the requirement to furnish these documents.

#### WORKING HOURS

All work shall be performed during **business hours, from Monday through Friday, from 8:00 to 17:00**. Other hours, if requested by the Contractor, may be approved by the Contracting Officer's Representative (COR). The Contractor shall give 24 hours in advance to COR who will consider any deviation from the hours identified above. Changes in work hours, initiated by the Contractor, will not be a cause for a price increase.

## PRECONSTRUCTION CONFERENCE

A preconstruction conference will be held 10 days after contract award to discuss the schedule, submittals, notice to proceed, mobilization and other important issues that effect construction progress. See FAR 52.236-26, Preconstruction Conference.

| DELIVERABLES - The following items shall be delivered under this contract: |                 |                                 |                   |
|----------------------------------------------------------------------------|-----------------|---------------------------------|-------------------|
| <u>Description</u>                                                         | <u>Quantity</u> | <u>Deliver Date</u>             | <u>Deliver To</u> |
| Section G. Securities/Insurance                                            | 1               | 10 days after award             | CO                |
| Section E. Construction Schedule                                           | 1               | 10 days after award             | COR               |
| Section E. Preconstruction Conference                                      | 1               | 10 days after award             | COR               |
| Section G. Personnel Biographies                                           | 1               | 10 days after award             | COR               |
| Section F. Payment Request                                                 | 1               | Last calendar day of each month | COR               |
| Section D. Request for Substantial Completion                              | 1               | 15 days before inspection       | COR               |
| Section D. Request for Final Acceptance                                    | 1               | 5 days before inspection        | COR               |

## SECTION F – CONTRACT ADMINISTRATION DATA

### 652.242-70 CONTRACTING OFFICER'S REPRESENTATIVE (COR) (AUG 1999)

(a) The Contracting Officer may designate in writing one or more Government employees, by name or position title, to take action for the Contracting Officer under this contract. Each designee shall be identified as a Contracting Officer's Representative (COR). Such designation(s) shall specify the scope and limitations of the authority so delegated; provided, that the designee shall not change the terms or conditions of the contract, unless the COR is a warranted Contracting Officer, and this authority is delegated in the designation.

(b) The COR for this contract is **a FAC engineer**.

Payment: The Contractor's attention is directed to Section H, 52.232-5, "Payments Under Fixed-Price Construction Contracts". The following elaborates on the information contained in that clause.

Requests for payment, may be made no more frequently than monthly. Payment requests shall cover the value of labor and materials completed and in place, including a prorated portion of overhead and profit.

After receipt of the Contractor's request for payment, and on the basis of an inspection of the work, the Contracting Officer shall make a determination as to the amount, which is then due. If the Contracting Officer does not approve payment of the full amount applied for, less the retainage allowed by in 52.232-5, the Contracting Officer shall advise the Contractor as to the reasons.

Under the authority of 52.232-27(a), the 14 day period identified in FAR 52.232-27(a)(1)(i)(A) is hereby changed to 30 days.

The Contractor shall show Value Added Tax (VAT) as a separate item on invoices submitted for payment.

### ***PAYMENT INSTRUCTIONS FOR SUBMITTING INVOICES.***

*Invoice submission must be done through the embassy's invoice filing portal, <https://mygrants.servicenowservices.com/mygrants>. If you already have an account, you can now do the invoice data entry.*

*If you do NOT have an approved account, you must send an email to [Bogotavendorportal@state.gov](mailto:Bogotavendorportal@state.gov), requesting your account creation. Our finance section will contact you via email and send registration instructions on how to obtain your account.*

*If you would like to setup your user account in advance before submitting an invoice, please send an email to [Bogotavendorportal@state.gov](mailto:Bogotavendorportal@state.gov). Please wait until you obtain your Purchase Order or Contract from the Procurement Office before requesting an user account in advance.*

*Invoices can only be submitted through the Vendor*

*Portal: <https://mygrants.servicenowservices.com/mygrants>*

*How can you easily file an invoice on the portal? Please see the following video.*

*\*Ensure to set the CC option and then select English language.*

*[Tutorial video for invoice filling through the vendor portal.](#) \**

*To learn about the account registration process on the portal, you can consult the following video tutorial:*

*\*Please select the CC option and then select English language.*

*[Tutorial video for registration in the vendor portal](#) \**

***Payment tracking***

*For bill payment status issues after 30 days of filing the bill, please contact [BogotaPS@state.gov](mailto:BogotaPS@state.gov)*

***Point of Contacts***

*• For vendor portal issues, (e.g. account activation, portal questions) please email [Bogotavendorportal@state.gov](mailto:Bogotavendorportal@state.gov)*

## SECTION G - SPECIAL TERMS AND CONDITIONS

G.1.0 PERFORMANCE/PAYMENT PROTECTION - The Contractor shall furnish some form of payment protection as described in 52.228-13 in the amount of 50% of the contract price.

G.1.1 The Contractor shall provide the information required by the paragraph above within ten (10) calendar days after award. Failure to timely submit the required security may result in rescinding or termination of the contract by the Government. If the contract is terminated, the Contractor will be liable for those costs as described in FAR 52.249-10, Default (Fixed-Price Construction), which is included in this purchase order.

G.1.2 The bonds or alternate performance security shall guarantee the Contractor's execution and completion of the work within the contract time. This security shall also guarantee the correction of any defects after completion, the payment of all wages and other amounts payable by the Contractor under its subcontracts or for labor and materials, and the satisfaction or removal of any liens or encumbrances placed on the work.

G.1.3 The required securities shall remain in effect in the full amount required until final acceptance of the project by the Government. Upon final acceptance, the penal sum of the performance security shall be reduced to 10% of the contract price. The security shall remain in effect for one year after the date of final completion and acceptance, and the Contractor shall pay any premium required for the entire period of coverage.

G.2.0 INSURANCE - The Contractor is required by FAR 52.228-5, "Insurance - Work on a Government Installation" to provide whatever insurance is legally necessary. The Contractor shall at its own expense provide and maintain during the entire performance period the following insurance amounts:

G.2.1 GENERAL LIABILITY (includes premises/operations, collapse hazard, products, completed operations, contractual, independent contractors, broad form property damage, personal injury):

|                                                          |                    |
|----------------------------------------------------------|--------------------|
| (1) BODILY INJURY, ON OR OFF THE SITE, IN U.S. DOLLARS   |                    |
| Per Occurrence                                           | <b>USD\$10,000</b> |
| Cumulative                                               | <b>USD\$20,000</b> |
| (2) PROPERTY DAMAGE, ON OR OFF THE SITE, IN U.S. DOLLARS |                    |
| Per Occurrence                                           | <b>USD\$10,000</b> |
| Cumulative                                               | <b>USD\$20,000</b> |

G.2.2 The foregoing types and amounts of insurance are the minimums required. The Contractor shall obtain any other types of insurance required by local law or that are ordinarily or customarily obtained in the location of the work. The limit of such insurance shall be as provided by law or sufficient to meet normal and customary claims.

Required insurance for reference:

**1-Wage payment and social benefits policy.** Amounting to 30% of the value of the contract with validity equal to the contract term plus three years. The Social benefits policy will not be necessary if a certification is issued swearing that all staff and  
15

personnel are duly registered in a social security scheme, covering accidents, death, hospitalization, and accidental death.

**2-General liability insurance policy:** Validity equal to the contract term plus two months.

**3-Work quality and stability.** Amounting to 50% of the value of the contract and valid for three (3) years after completion of the work.

G.2.3 The Contractor agrees that the Government shall not be responsible for personal injuries or for damages to any property of the Contractor, its officers, agents, servants, and employees, or any other person, arising from and incident to the Contractor's performance of this contract. The Contractor shall hold harmless and indemnify the Government from any and all claims arising therefrom, except in the instance of gross negligence on the part of the Government.

G.2.4 The Contractor shall obtain adequate insurance for damage to, or theft of, materials and equipment in insurance coverage for loose transit to the site or in storage on or off the site.

G.2.5 The general liability policy required of the Contractor shall name "the United States of America, acting by and through the Department of State", as an additional insured with respect to operations performed under this contract.

### G.3.0 DOCUMENT DESCRIPTIONS

G.3.1 SUPPLEMENTAL DOCUMENTS: The Contracting Officer shall furnish from time to time such detailed drawings and other information as is considered necessary, in the opinion of the Contracting Officer, to interpret, clarify, supplement, or correct inconsistencies, errors or omissions in the Contract documents, or to describe minor changes in the work not involving an increase in the contract price or extension of the contract time. The Contractor shall comply with the requirements of the supplemental documents, and unless prompt objection is made by the Contractor within 20 days, their issuance shall not provide for any claim for an increase in the Contract price or an extension of contract time.

G.3.1.1. RECORD DOCUMENTS. The Contractor shall maintain at the project site:

(1) a current marked set of Contract drawings and specifications indicating all interpretations and clarification, contract modifications, change orders, or any other departure from the contract requirements approved by the Contracting Officer; and,

(2) a complete set of record shop drawings, product data, samples and other submittals as approved by the Contracting Officer.

G.3.1.2. "As-Built" Documents: After final completion of the work, but before final acceptance thereof, the Contractor shall provide:

- (1) a complete set of "as-built" drawings, based upon the record set of drawings, marked to show the details of construction as actually accomplished; and,
- (2) record shop drawings and other submittals, in the number and form as required by the specifications.

G.4.0 LAWS AND REGULATIONS - The Contractor shall, without additional expense to the Government, be responsible for complying with all laws, codes, ordinances, and regulations applicable to the performance of the work, including those of the host country, and with the lawful orders of any governmental authority having jurisdiction. Host country authorities may not enter the construction site without the permission of the Contracting Officer. Unless otherwise directed by the Contracting Officer, the Contractor shall comply with the more stringent of the requirements of such laws, regulations, and orders and of the contract. In the event of a conflict between the contract and such laws, regulations and orders, the Contractor shall promptly advise the Contracting Officer of the conflict and of the Contractor's proposed course of action for resolution by the Contracting Officer.

G.4.1 The Contractor shall comply with all local labor laws, regulations, customs, and practices pertaining to labor, safety, and similar matters, to the extent that such compliance is not inconsistent with the requirements of this contract.

G.4.2 The Contractor shall give written assurance to the Contracting Officer that all subcontractors and others performing work on or for the project have obtained all requisite licenses and permits.

G.4.3 The Contractor shall submit proper documentation and evidence satisfactory to the Contracting Officer of compliance with this clause.

G.5.0 CONSTRUCTION PERSONNEL - The Contractor shall maintain discipline at the site and at all times take all reasonable precautions to prevent any unlawful, riotous, or disorderly conduct by or among those employed at the site. The Contractor shall ensure the preservation of peace and protection of persons and property in the neighborhood of the project against such action. The Contracting Officer may require, in writing that the Contractor remove from the work any employee that the Contracting Officer deems incompetent, careless, insubordinate or otherwise objectionable, or whose continued employment on the project is deemed by the Contracting Officer to be contrary to the Government's interests.

G.5.1 If the Contractor has knowledge that any actual or potential labor dispute is delaying or threatens to delay the timely performance of this contract, the Contractor shall immediately give notice, including all relevant information, to the Contracting Officer.

G.5.2 After award, the Contractor has ten calendar days to submit to the Contracting Officer a list of workers and supervisors assigned to this project for the Government to conduct all



necessary security checks. It is anticipated that security checks will take at least thirty (30) days to perform. For each individual, the list shall include:

- \* Full Name
- Place and Date of Birth
- Current Address
- Identification number
- Gender
- Marital status
- Phone number
- Occupation
- Employment
- Naturalization
- Current and past citizenship
- Passport Number
- As long as one (1) scanned copy of the CEDULA, one (1) scanned copy of CERTIFICADO DE • ANTECEDENTES JUDICIALES (can be obtained for free by the applicant at [www.policia.gov.co](http://www.policia.gov.co)).

- For Company Representatives Name Checks please attach one (1) scanned copy of the
- Chamber of Commerce.

Failure to provide any of the above information may be considered grounds for rejection and/or resubmittal of the application. Once the Government has completed the security screening and approved the applicants a badge will be provided to the individual for access to the site. This badge may be revoked at any time due to the falsification of data, or misconduct on site.

G.5.3 The Contractor shall provide an English speaking supervisor on site at all times. This position is considered as key personnel under this purchase order.

G.6.0 Materials and Equipment - All materials and equipment incorporated into the work shall be new and for the purpose intended, unless otherwise specified. All workmanship shall be of good quality and performed in a skillful manner that will withstand inspection by the Contracting Officer.

#### G.7.0 SPECIAL WARRANTIES

G.7.1 Any special warranties that may be required under the contract shall be subject to the stipulations set forth in 52.246-21, "Warranty of Construction", as long as they are not in conflict.

G.7.2 The Contractor shall obtain and furnish to the Government all information required to make any subcontractor's, manufacturer's, or supplier's guarantee or warranty legally binding and effective. The Contractor shall submit both the information and the guarantee or warranty to the Government in sufficient time to permit the Government to meet any time limit specified in the

guarantee or warranty, but not later than completion and acceptance of all work under this contract.

#### G.8.0 EQUITABLE ADJUSTMENTS

Any circumstance for which the contract provides an equitable adjustment that causes a change within the meaning of paragraph (a) of the "Changes" clause shall be treated as a change under that clause; provided, that the Contractor gives the Contracting Officer prompt written notice (within 20 days) stating:

- (a) the date, circumstances, and applicable contract clause authorizing an equitable adjustment and
- (b) that the Contractor regards the event as a changed condition for which an equitable adjustment is allowed under the contract

The Contractor shall provide written notice of a differing site condition within 10 calendar days of occurrence following FAR 52.236-2, Differing Site Conditions.

#### G.9.0 ZONING APPROVALS AND PERMITS

The Government shall be responsible for:

- obtaining proper zoning or other land use control approval for the project
- obtaining the approval of the Contracting Drawings and Specifications
- paying fees due for the foregoing; and,
- for obtaining and paying for the initial building permits.

## SECTION H - CLAUSES

### 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at: [Acquisition.gov](http://Acquisition.gov) this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at [e-CFR](http://e-CFR) to see the links to the FAR. You may also use an Internet "search engine" (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

#### THE FOLLOWING FEDERAL ACQUISITION REGULATION CLAUSE(S) IS/ARE INCORPORATED BY REFERENCE (48 CFR CH. 1):

| <u>CLAUSE</u> | <u>TITLE AND DATE</u>                                                                                                                                      |
|---------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 52.202-1      | DEFINITIONS (JUN 2020)                                                                                                                                     |
| 52.203-17     | CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS (NOV 2023)                                                                                                        |
| 52.204-9      | PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011)                                                                                          |
| 52.204-10     | REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS (NOV 2025)                                                                              |
| 52.204-13     | SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (NOV 2025)                                                                                                         |
| 52.204-19     | INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)                                                                                |
| 52.209-6      | PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED OR PROPOSED FOR DEBARMENT OR VOLUNTARILY EXCLUDED (NOV 2025) |
| 52.216-7      | ALLOWABLE COST AND PAYMENT (NOV 2025)                                                                                                                      |
| 52.222-1      | NOTICE TO THE GOVERNMENT OF LABOR DISPUTES (NOV 2025)                                                                                                      |

|           |                                                                                                                               |
|-----------|-------------------------------------------------------------------------------------------------------------------------------|
| 52.222-19 | CHILD LABOR-COOPERATION WITH AUTHORITIES AND REMEDIES (NOV 2025)                                                              |
| 52.222-50 | COMBATING TRAFFICKING IN PERSONS (NOV 2025)                                                                                   |
| 52.225-5  | TRADE AGREEMENTS (NOV 2023)                                                                                                   |
| 52.225-14 | INCONSISTENCY BETWEEN ENGLISH VERSION AND TRANSLATION OF CONTRACT (FEB 2000)                                                  |
| 52.225-19 | CONTRACTOR PERSONNEL IN A DESIGNATED OPERATIONAL AREA OR SUPPORTING A DIPLOMATIC MISSION OUTSIDE THE UNITED STATES (MAY 2020) |
| 52.226-8  | ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)                                                |
| 52.228-3  | WORKERS' COMPENSATION INSURANCE (DEFENSE BASE ACT) (JUL 2014)                                                                 |
| 52.228-4  | WORKERS' COMPENSATION AND WAR-HAZARD INSURANCE OVERSEAS (APR 1984)                                                            |
| 52.228-5  | INSURANCE - WORK ON A GOVERNMENT INSTALLATION (JAN 1997)                                                                      |
| 52.228-11 | PLEDGES OF ASSETS (FEB 2021)                                                                                                  |
| 52.228-13 | ALTERNATIVE PAYMENT PROTECTION (JULY 2000)                                                                                    |
| 52.228-14 | IRREVOCABLE LETTER OF CREDIT (NOV 2014)                                                                                       |
| 52.228-15 | PERFORMANCE AND PAYMENT BONDS-CONSTRUCTION (JUN 2020)                                                                         |
| 52.229-6  | TAXES - FOREIGN FIXED-PRICE CONTRACTS (JUL 2025)                                                                              |
| 52.229-7  | TAXES- FIXED PRICE CONTRACTS WITH FOREIGN GOVERNMENTS (JUL 2025)                                                              |
| 52.232-5  | PAYMENTS UNDER FIXED-PRICE CONSTRUCTION CONTRACTS (MAY 2014)                                                                  |
| 52.232-8  | DISCOUNTS FOR PROMPT PAYMENT (FEB 2002)                                                                                       |
| 52.232-11 | EXTRAS (APR 1984)                                                                                                             |
| 52.232-18 | AVAILABILITY OF FUNDS (APR 1984)                                                                                              |

|           |                                                                                                  |
|-----------|--------------------------------------------------------------------------------------------------|
| 52.232-22 | LIMITATION OF FUNDS (NOV 2025)                                                                   |
| 52.232-25 | PROMPT PAYMENT (JAN 2017)                                                                        |
| 52.232-27 | PROMPT PAYMENT FOR CONSTRUCTION CONTRACTS (JAN 2017)                                             |
| 52.232-33 | PAYMENT BY ELECTRONIC FUNDS TRANSFER - SYSTEM FOR AWARD MANAGEMENT (OCT 2018)                    |
| 52.232-34 | PAYMENT BY ELECTRONIC FUNDS TRANSFER – OTHER THAN SYSTEM FOR AWARD MANAGEMENT (JULY 2013)        |
| 52.233-1  | DISPUTES (NOV 2025)                                                                              |
| 52.233-3  | PROTEST AFTER AWARD (NOV 2025)                                                                   |
| 52.236-2  | DIFFERING SITE CONDITIONS (JUL 2025)                                                             |
| 52.236-3  | SITE INVESTIGATION AND CONDITIONS AFFECTING THE WORK (JUL 2025)                                  |
| 52.236-5  | MATERIAL AND WORKMANSHIP (JUL 2025)                                                              |
| 52.236-6  | SUPERINTENDENCE BY THE CONTRACTOR (JUL 2025)                                                     |
| 52.236-7  | PERMITS AND RESPONSIBILITIES (JUL 2025)                                                          |
| 52.236-8  | OTHER CONTRACTS (JUL 2025)                                                                       |
| 52.236-9  | PROTECTION OF EXISTING VEGETATION, STRUCTURES, EQUIPMENT, UTILITIES, AND IMPROVEMENTS (JUL 2025) |
| 52.236-10 | OPERATIONS AND STORAGE AREAS (JUL 2025)                                                          |
| 52.236-11 | USE AND POSSESSION PRIOR TO COMPLETION (JUL 2025)                                                |
| 52.236-12 | CLEANING UP (JUL 2025)                                                                           |
| 52.236-13 | ACCIDENT PREVENTION (JUL 2025)                                                                   |
| 52.236-14 | AVAILABILITY AND USE OF UTILITY SERVICES (JUL 2025)                                              |
| 52.236-15 | SCHEDULES FOR CONSTRUCTION CONTRACTS (JUL 2025)                                                  |
| 52.236-21 | SPECIFICATIONS AND DRAWINGS FOR CONSTRUCTION (JUL 2025)                                          |

|           |                                                                        |
|-----------|------------------------------------------------------------------------|
| 52.240-91 | SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025)                        |
| 52.242-14 | SUSPENSION OF WORK (APR 1984)                                          |
| 52.243-4  | CHANGES (JUN 2025)                                                     |
| 52.243-5  | CHANGES AND CHANGED CONDITIONS (JUN2025)                               |
| 52.245-2  | GOVERNMENT PROPERTY INSTALLATION OPERATION SERVICES (APR 2012)         |
| 52.245-9  | USE AND CHARGES (APR 2012)                                             |
| 52.246-12 | INSPECTION OF CONSTRUCTION (AUG 1996)                                  |
| 52.246-17 | WARRANTY OF SUPPLIES OF A NONCOMPLEX NATURE (JUN 2003)                 |
| 52.246-21 | WARRANTY OF CONSTRUCTION (MAR 1994)                                    |
| 52.246-26 | REPORTING NONCONFORMING ITEMS (AUG 2024)                               |
| 52.249-2  | TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE) (APR 2012) |
| 52.249-10 | DEFAULT (FIXED-PRICE CONSTRUCTION) (APR 1984)                          |
| 52.249-14 | EXCUSABLE DELAYS (APR 1984)                                            |

## I. FAR CLAUSES INCORPORATED IN FULL TEXT

### **52.240-91 Security Prohibitions and Exclusions.**

#### SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025)

(a) *Definitions.* As used in this clause—

*American Security Drone Act-covered foreign entity* means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

*Backhaul* means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

*Covered application* means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

*Covered article*, as defined in 41 U.S.C. 4713(k), means:

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

*Covered foreign country* means The People's Republic of China.

*Covered telecommunications equipment or services* means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

*Critical technology* means—

- (1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;
- (2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—
  - (i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or
  - (ii) For reasons relating to regional stability or surreptitious listening;

52.2-364

- (3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);
- (4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);
- (5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or
- (6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

*FASC-prohibited unmanned aircraft system* means an unmanned aircraft system manufactured or assembled by an

American Security Drone Act—covered foreign entity.

*FASCSA order* means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

- (1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

*Information technology*, as defined in 40 U.S.C. 11101(6)—

- (1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—
  - (i) Of that equipment; or
  - (ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;
- (2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but
- (3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

*Intelligence community*, as defined by 50 U.S.C. 3003(4), means the following—

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or



(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

*Interconnection arrangements* means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

*Kaspersky Lab-covered article* means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

*Kaspersky Lab-covered entity* means—

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

*National security system*, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

*Roaming* means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

*Sensitive compartmented information* means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

*Sensitive compartmented information system* means a national security system authorized to process or store sensitive compartmented information.

*Source* means a non-Federal supplier, or potential supplier, of products or services, at any tier.

*Subsidiary* means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

*Substantial or essential component* means any component necessary for the proper function or performance of a piece of equipment, system, or service.

*Unmanned aircraft* means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

*Unmanned aircraft system* means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.*

Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense

Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been

made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions.*

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationalsand-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition.* The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions.*

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

- (ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).
- (iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).
- (iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).
- (e) *Governmentwide exclusion and removal orders.*
  - (1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:
    - (i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.
    - (ii) For all other solicitations and contracts, DHS FASCSA orders apply.
  - (2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.
  - (3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.
  - (4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).
- (f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.
- (g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.
- (h) *General report.*
  - (1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:
    - (i) Contract number and order number, if applicable;
    - (ii) The specific prohibition the product or service is not complying with;
    - (iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

- (iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));
  - (v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;
  - (vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);
  - (vii) Whether alternative products or services are available that would comply with the prohibition;
  - (viii) If the product or service is related to item maintenance, include the following information on the item being maintained:
    - (A) Brand;
    - (B) Model number, OEM number, manufacturer part number, or wholesaler number; and
    - (C) Item description, as applicable.
  - (ix) Any readily available information about mitigation actions implemented or recommended.
- (2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:
- (i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.
  - (ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.
  - (iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.
- (3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.
- (4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.
- (i) *New FASCSA orders report.*
- (1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.
- (2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.
- (3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting

office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

- (i) Contract number and order number, if applicable;
  - (ii) Name of the covered article or source subject to a FASCSA order;
  - (iii) The specific FASCSA order the product or service does not comply with;
  - (iv) The elements of (h)(1)(iii) through (ix) of this clause.
  - (j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.
- (End of clause)

#### **52.213-4 Terms and Conditions—Simplified Acquisitions (Noncommercial).**

TERMS AND CONDITIONS—SIMPLIFIED ACQUISITIONS (NONCOMMERCIAL) (NOV 2025)

(a) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

(1) Within a reasonable period of time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(b) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(c) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the

cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(d) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(e) *Warranty.* The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(End of clause)

652.204-70 DEPARTMENT OF STATE PERSONAL IDENTIFICATION CARD  
ISSUANCE PROCEDURES (FEB 2015)

(a) The Contractor shall comply with the Department of State (DOS) Personal Identification Card Policy and Procedures for all employees performing under this contract who require frequent and continuing access to DOS facilities, or information systems. The Contractor shall insert the substance of this clause in all subcontracts when the subcontractor's employees will require frequent and continuing access to DOS facilities, or information systems.

(b) The DOS Personal Identification Card Policy and Procedures may be accessed at

<http://www.state.gov/m/ds/rls/rpt/c21664.htm>.

(End of clause)

652.229-71 PERSONAL PROPERTY DISPOSITION AT POSTS ABROAD (AUG 1999)

Regulations at 22 CFR Part 136 require that U.S. Government employees and their families do not profit personally from sales or other transactions with persons who are not themselves entitled to exemption from import restrictions, duties, or taxes. Should the Contractor experience importation or tax privileges in a foreign country because of its contractual relationship to the United States Government, the Contractor shall observe the requirements of 22 CFR Part 136 and all policies, rules, and procedures issued by the chief of mission in that foreign country.

(End of clause)

652.236-70 ADDITIONAL SAFETY MEASURES (OCT 2017)

In addition to the safety/accident prevention requirements of FAR 52.236-13, Accident Prevention Alternate I, the contractor shall comply with the following additional safety measures.

(a) *High Risk Activities*. If the project contains any of the following high risk activities, the contractor shall follow the section in the latest edition, as of the date of the solicitation, of the U.S. Army Corps of Engineers Safety and Health manual, EM 385-1-1, that corresponds to the high risk activity. Before work may proceed, the contractor must obtain approval from the COR of the written safety plan required by FAR 52.236-13, Accident Prevention Alternate I (see paragraph (f) below), containing specific hazard mitigation and control techniques.

- (1) Scaffolding;
- (2) Work at heights above 1.8 meters;
- (3) Trenching or other excavation greater than one (1) meter in depth;
- (4) Earth-moving equipment and other large vehicles;
- (5) Cranes and rigging;
- (6) Welding or cutting and other hot work;
- (7) Partial or total demolition of a structure;
- (8) Temporary wiring, use of portable electric tools, or other recognized electrical hazards. Temporary wiring and portable electric tools require the use of a ground fault circuit interrupter (GFCI) in the affected circuits; other electrical hazards may also require the use of a GFCI;
- (9) Work in confined spaces (limited exits, potential for oxygen less than 19.5 percent or combustible atmosphere, potential for solid or liquid engulfment, or other hazards considered to be immediately dangerous to life or health such as water tanks, transformer vaults, sewers, cisterns, etc.).
- (10) Hazardous materials - a material with a physical or health hazard including but not limited to, flammable, explosive, corrosive, toxic, reactive or unstable, or any operations, which creates any kind of contamination inside an occupied building such as dust from demolition activities, paints, solvents, etc.; or
- (11) Hazardous noise levels as required in EM 385-1 Section 5B or local standards if more restrictive.



(b) *Safety and Health Requirements.* The contractor and all subcontractors shall comply with the latest edition of the U.S. Army Corps of Engineers Safety and Health manual EM 385-1-1, or OSHA 29 CFR parts 1910 or 1926 if no EM 385-1-1 requirements are applicable, and the accepted contractor's written safety program.

(c) *Mishap Reporting.* The contractor is required to report **immediately** all mishaps to the COR and the contracting officer. A "mishap" is any event causing injury, disease or illness, death, material loss or property damage, or incident causing environmental contamination. The mishap reporting requirement shall include fires, explosions, hazardous materials contamination, and other similar incidents that may threaten people, property, and equipment.

(d) *Records.* The contractor shall maintain an accurate record on all mishaps incident to work performed under this contract resulting in death, traumatic injury, occupational disease, or damage to or theft of property, materials, supplies, or equipment. The contractor shall report this data in the manner prescribed by the contracting officer.

(e) *Subcontracts.* The contractor shall insert this clause, including this paragraph (e), with appropriate changes in the designation of the parties, in subcontracts.

(f) *Written program.* The plan required by paragraph (f)(1) of the clause entitled "Accident Prevention Alternate I" shall be known as the Site Safety and Health Plan (SSHP) and shall address any activities listed in paragraph (a) of this clause, or as otherwise required by the contracting officer/COR.

(1) The SSHP shall be submitted at least 10 working days prior to commencing any activity at the site.

(2) The plan must address developing activity hazard analyses (AHAs) for specific tasks. The AHAs shall define the activities being performed and identify the work sequences, the specific anticipated hazards, site conditions, equipment, materials, and the control measures to be implemented to eliminate or reduce each hazard to an acceptable level of risk. Work shall not begin until the AHA for the work activity has been accepted by the COR and discussed with all engaged in the activity, including the Contractor, subcontractor(s), and Government on-site representatives.

(3) The names of the Competent/Qualified Person(s) required for a particular activity (for example, excavations, scaffolding, fall protection, other activities as specified by EM 385-1-1) shall be identified and included in the AHA. Proof of their competency/qualification shall be submitted to the contracting officer or COR for acceptance prior to the start of that work activity. The AHA shall be reviewed and modified as necessary to address changing site conditions, operations, or change of competent/qualified person(s).

(End of clause)

652.242-73 AUTHORIZATION AND PERFORMANCE (AUG 1999)

(a) The Contractor warrants the following:

(1) That is has obtained authorization to operate and do business in the country or countries in which this contract will be performed;

(2) That is has obtained all necessary licenses and permits required to perform this contract; and,

(3) That it shall comply fully with all laws, decrees, labor standards, and regulations of said country or countries during the performance of this contract.

(b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a) of this clause.

(End of clause)

652.243-70 NOTICES (AUG 1999)

Any notice or request relating to this contract given by either party to the other shall be in writing. Said notice or request shall be mailed or delivered by hand to the other party at the address provided in the schedule of the contract. All modifications to the contract must be made in writing by the Contracting Officer.

(End of clause)

***SECTION I - LIST OF ATTACHMENTS***

| ATTACHMENT<br>NUMBER | DESCRIPTION OF ATTACHMENT                              | NUMBER OF<br>PAGES |
|----------------------|--------------------------------------------------------|--------------------|
| Attachment 1         | Scope of work                                          |                    |
| Attachment 2         | Breakdown of Price by Divisions of Specifications      | 1                  |
| Attachment 3         | Safety requirements for contractors and subcontractors |                    |

## SECTION J – INSTRUCTIONS ON HOW TO SUBMIT A QUOTATION

The Offeror shall include Defense Base Act (DBA) insurance premium costs covering employees. The offeror may obtain DBA insurance directly from any Department of Labor approved providers at the DOL website at <http://www.dol.gov/owcp/dlhwc/lscarrier.htm>

### A. QUALIFICATIONS OF OFFERORS

Offerors/quoters must be technically qualified and financially responsible to perform the work described in this solicitation. At a minimum, each Offeror/Quoter must meet the following requirements:

- (1) Be able to understand written and spoken English.
- (2) Have an established business with a permanent address and telephone listing in **Colombia** or plans to establish an office within 30 days of contract award.
- (3) The offeror shall provide proof of SAM registration to include the SAM UEI number
- (4) Be able to demonstrate prior construction experience with suitable references.
- (5) Have the necessary personnel, equipment and financial resources available to perform the work.
- (6) Have all licenses and permits required by local law.
- (7) Meet all local insurance requirements.
- (8) Have the ability to obtain or to post adequate performance security, such as bonds, irrevocable letters of credit or guarantees issued by a reputable financial institution.
- (9) Have no adverse criminal record; and
- (10) Have no political or business affiliation which could be considered contrary to the interests of the United States.

### B. SUBMISSION OF QUOTATIONS

This solicitation is for the performance of the construction services described in SCOPE OF WORK, and the Attachments which are a part of this request for quotation.

Submit the complete quotation to the address indicated.

The Offeror/Quoter shall identify and explain/justify any deviations, exceptions, or conditional assumptions taken with respect to any of the instructions or requirements of this request for quotation in the appropriate volume of the offer.

Volume II: Performance schedule and Business Management/Technical Proposal.

- (a) Present the performance schedule in the form of a "bar chart" indicating when the various portions of the work will be commenced and completed within the required schedule. This bar chart shall be in sufficient detail to clearly show each segregable portion of work and its planned commencement and completion date.
- (b) The Business Management/Technical Proposal shall be in two parts, including the following information:

Proposed Work Information - Provide the following:

- (1) A list of the names addresses and telephone numbers of the owners, partners, and principal officers of the Offeror.
- (2) The name and address of the Offeror's field superintendent for this project.
- (3) A list of the names, addresses, and telephone numbers of subcontractors and principal materials suppliers to be used on the project, indicating what portions of the work will be performed by them; and,

Experience and Past Performance - List all contracts and subcontracts your company has held over the past three years for the same or similar work. Provide the following information for each contract and subcontract:

- (1) Customer's name, address, and telephone numbers of customer's lead contract and technical personnel.
- (2) Contract number and type.
- (3) Date of the contract award place(s) of performance, and completion dates; Contract dollar value.
- (4) Brief description of the work, including responsibilities; and
- (5) Any litigation currently in process or occurring within last 5 years.

C. 52.236-27 SITE VISIT (CONSTRUCTION) (FEB 1995)

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) A site visit has been scheduled for XXXXXXXXXXXXXXXX. Interested companies must send an e-mail to [BogotaGSOcompras@state.gov](mailto:BogotaGSOcompras@state.gov) with the representative names (2 per company) before xxxxxxxx

(c) Participants will meet at **Carrera 45 # 24B 27.**

D. MAGNITUDE OF CONSTRUCTION PROJECT

It is anticipated that the range in price of this contract will be:XXXXXXXXXXXXX

E. LATE QUOTATIONS. Late quotations shall be handled in accordance with FAR.

F. 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at [Acquisition.gov](#) this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at [e-CFR](#) to see the links to the FAR. You may also use an Internet "search engine" (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATION PROVISIONS ARE  
INCORPORATED BY REFERENCE (48 CFR CH. 1):

| <u>PROVISION</u> | <u>TITLE AND DATE</u>                                           |
|------------------|-----------------------------------------------------------------|
| 52.204-7         | SYSTEM FOR AWARD MANAGEMENT (NOV 2025)                          |
| 52.214-34        | SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE<br>(APR 1991)      |
| 52.215-1         | INSTRUCTIONS TO OFFERORS--COMPETITIVE ACQUISITION<br>(NOV 2025) |

## SECTION K - EVALUATION CRITERIA

Award will be made to the lowest priced, acceptable, responsible quoter. The Government reserves the right to reject quotations that are unreasonably low or high in price.

The Government will determine acceptability by assessing the offeror's compliance with the terms of the RFQ. The Government will determine responsibility by analyzing whether the apparent successful quoter complies with the requirements of FAR 9.1, including:

- ability to comply with the required performance period, taking into consideration all existing commercial and governmental business commitments.
- satisfactory record of integrity and business ethics.
- necessary organization, experience, and skills or the ability to obtain them.
- necessary equipment and facilities or the ability to obtain them; and
- otherwise, qualified, and eligible to receive an award under applicable laws and regulations.
- Review the SOW section 18 to see detailed information

## SECTION L – REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS

### L.1. **52.240-90 Security Prohibitions and Exclusions Representations and Certifications.** SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (NOV 2025)

(a) *Definitions.* As used in this provision—

*Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component* have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

*Business operations* means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

*Marginalized populations of Sudan* means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

*Restricted business operations* means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan

Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

*Sensitive technology*—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).



(b) *Procedures.*

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders.*

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror’s possession but does not need to include an internal or thirdparty audit.

(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L.

104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and (iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

- (i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and
- (ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.
- (iii) The offeror shall email questions concerning sensitive technology to the Department of State at [CISADA106@state.gov](mailto:CISADA106@state.gov).

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

- (i) Contract number and order number, if applicable;
- (ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;
- (iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);
- (iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));
- (v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;
- (vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);
- (vii) Whether alternative products or services are available that would be compliant with the prohibition;
- (viii) If the product or service is related to item maintenance, include the following information on the item being maintained:
  - (A) Brand;
  - (B) Model number, OEM number, manufacturer part number, or wholesaler number; and
  - (C) Item description, as applicable.

- (ix) Any readily available information about mitigation actions undertaken or recommended.
- (2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:
  - (i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.
  - (ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.
- (3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.
- (h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

L.2. 52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS' REPRESENTATION (NOV 2025)

(a) Definitions. "Inverted domestic corporation" and "subsidiary" have the meaning given in the clause of this contract entitled Prohibition on Contracting with Inverted Domestic Corporations ([52.209-10](#)).

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at [9.108-2\(b\)](#) applies or the requirement is waived in accordance with the procedures at [9.108-4](#).

(c) Representation. The Offeror represents that.

- (1) It ☐ is, ☐ is not an inverted domestic corporation; and
- (2) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(End of provision)

L.3 AUTHORIZED CONTRACTOR ADMINISTRATOR

If the offeror does not fill-in the blanks below, the official who signed the offer will be deemed to be the offeror's representative for Contract Administration, which includes all matters pertaining to payments.

|                   |
|-------------------|
| Name:             |
| Telephone Number: |
| Address:          |
|                   |



## 1.1 PROJECT INFORMATION

|                                                                                         |
|-----------------------------------------------------------------------------------------|
| Project Title: Cafeteria Canopy Modernization– Roof Maintenance and Partial Replacement |
| Project Location: U.S. Embassy Bogotá – Coffee Area                                     |
| Owner / Client: Facility Management Office (FAC)                                        |
| Procurement Type: Contract                                                              |
| BIN: X3026                                                                              |

## Contents

|                                                                 |    |
|-----------------------------------------------------------------|----|
| 1. INTRODUCTION .....                                           | 2  |
| 2 SCOPE OF WORK (8-PHASE APPROACH & TECHNICAL INTEGRATION)..... | 3  |
| 3 COORDINATION AND OVERSIGHT.....                               | 7  |
| 4 GOVERNMENT RESPONSIBILITIES .....                             | 7  |
| 5 MATERIALS.....                                                | 8  |
| 6 CONSTRUCTION REQUIREMENTS BY PHASE.....                       | 9  |
| 7 QUALITY CONTROL (QA/QC).....                                  | 12 |
| 8 SAFETY REQUIREMENTS & HSEQ SUPERVISION .....                  | 13 |
| 9 CODES AND STANDARDS.....                                      | 13 |
| 10 DELIVERABLES.....                                            | 13 |
| 11 SCHEDULE.....                                                | 14 |
| 12 SUBMITTALS .....                                             | 16 |
| 13 INSPECTIONS .....                                            | 16 |
| 14 WARRANTY .....                                               | 16 |
| 15 ACCEPTANCE CRITERIA.....                                     | 17 |
| 16 CLEANUP .....                                                | 17 |
| 17 PROTECTION OF EXISTING FACILITIES.....                       | 17 |
| 18 COORDINATION REQUIREMENTS .....                              | 17 |
| 19 QUANTITY CHART .....                                         | 19 |
| 20 SECURITY NAME CHECK AND VISITOR ACCESS REQUESTS (VAR).....   | 20 |



## 1. INTRODUCTION

### 1.2 Background

The U.S. Embassy compound requires the comprehensive modernization, structural remediation, and architectural renovation of the outdoor canopy structure serving the Current Café Mesa de los Santos area. The existing installation exhibits structural fatigue, thermal and weathering degradation on its glass covering, localized failures in surrounding stonework and exposed aggregate finishes, and drainage inefficiencies.



To maintain compound aesthetic standards, ensure life-safety compliance, and protect personnel and visitors from atmospheric elements, the U.S. Government requires the services of a qualified contractor to furnish all labor, materials, equipment, engineering, and supervision necessary to execute the complete modernization. This project shall be executed under a rigorous 8-phase operational framework, fully integrating pre-engineering technical standards, Autodesk Inventor design dossiers, structural rectangular steel fabrication, roll-formed columns, laser-cut lattices, new roof installations, structural anchorage via 5/8" female anchor bolts, GMAW welding processes, HSEQ supervision, and Pintuco industrial enamel coating systems as established in official project documentation. The scope of this solicitation also includes the supply and installation of serge Ferrari new coverage to replace the existing one.



## 2 SCOPE OF WORK (8-PHASE APPROACH & TECHNICAL INTEGRATION)

The Contractor shall provide all necessary professional engineering, project management, skilled labor, specialized equipment, tools, and materials to execute the project across eight (8) distinct operational phases, fully integrating pre-engineering evaluations, Autodesk Inventor design dossiers, structural rectangular steel fabrication, roll-formed columns, laser-cut lattices, new roofing extension, structural anchorage via 5/8" female anchor bolts, GMAW welding processes, HSEQ supervision, and Pintuco industrial enamel coating systems and new serge Ferrari coverage.

### 2.1 Phase 1 – Investigation, Site Assessment and Engineering Design:

Conduct comprehensive technical site visits, field-verify all dimensions and structural interfaces, perform pre-engineering analysis, and develop complete structural design models and calculation memories utilizing Autodesk Inventor software to be delivered as part of the project DOSIER. The required verification includes the new roofing only and new perimeter glass panels required to enclose the coffee area.

### 2.2 Phase 2 – Material Procurement and Off-Site Fabrication

- **Material Procurement:** Procure all certified raw materials, including structural rectangular steel tubing conforming to ASTM A500 Grade B, new roofing 10mm polycarbonate alveolar with UV filter, Serge Ferrari architectural tensile membrane





materials, 5/8" female-type anchor bolts, Pintuco industrial-grade enamel coatings and compatible rust-inhibitive primers, EPDM structural gaskets, and stainless-steel tensioning hardware.

- **Structural Steel Fabrication:** Fabricate primary framing, beams, and support members using rectangular steel tubing in strict accordance with the approved Autodesk Inventor shop drawings and calculation memories.
- **Column Roll-Forming:** Manufacture structural columns utilizing structural rectangular tubing subjected to precision roll-forming according to the approved engineering geometry.
- **Laser-Cut Lattice Assembly:** Fabricate and assemble decorative and structural lattices via high-precision laser cutting according to the approved architectural layouts.
- **GMAW Welding Operations:** Execute all structural steel assembly and welding exclusively through the Gas Metal Arc Welding (GMAW) process performed by certified welding personnel under AWS D1.1 structural welding code requirements.
- **Surface Preparation and Protective Coating:** Perform a thorough initial cleaning and surface preparation of all fabricated steel elements to remove oils, mill scale, and residues to SSPC-SP 11 standards prior to the application of the specified rust-inhibitive primer and multi-coat Pintuco industrial enamel paint system.

### 2.3 Phase 3 – Site Preparation and Demolition:

- **Site Mobilization and Work Area Assignment:** Mobilize to the compound, establish temporary facilities, and occupy the designated work and staging area assigned by the Embassy for performing all project operations.
- **Sanitary Facilities Assignment:** Utilize temporary restrooms assigned based on overall site availability and concurrent projects in execution; the Contractor shall be strictly responsible for the complete cleaning, maintenance, and upkeep of these assigned sanitary facilities, as the Embassy assumes no responsibility or liability for their cleaning or maintenance.
- **Site Order, Organization, and Tool Storage:** Maintain the designated work and staging area in a clean, orderly, and well-organized condition at all times, ensuring all contractor tools, equipment, and materials are properly stored exclusively within this assigned zone.
- **Waiver of Liability for Lost Materials:** Acknowledge and accept that the Embassy assumes no responsibility, liability, or custodianship for any lost, stolen, or damaged contractor materials, tools, or equipment left within the compound or assigned storage areas.



- **Site Protection and Barriers:** Erect heavy-duty temporary construction barriers, dust partitions, and protective walkways to segregate the work zone from adjacent active compound areas.
- **Controlled Demolition:** Carefully dismantle and remove existing glass roof panels and degraded structural elements without damaging surrounding compound finishes.

#### 2.4 Phase 4 – Canopy Modernization and Structural Installation:

- Remove newly fabricated structural columns, secure them using 5/8" female-type anchor bolts under strict HSEQ and high-altitude safety supervision, and install the primary structural steel framing.
- **Structural Column Removal:** Removal newly fabricated structural steel columns and secure them to the foundation base using 5/8" female-type anchor bolts under strict HSEQ and high-altitude safety supervision.
- **Primary Framework Installation:** Align, level, and anchor the main structural steel framing components to support the modernized canopy configurations.
- **Membrane Supply and Installation (Serge Ferrari Cover):** Furnish and install new architectural tensile membrane covering (supply and installation contract format) utilizing **Serge Ferrari** composite membrane technology (such as *Tenseo Xtrem TX30* series or equivalent, matching exact manufacturer specifications). The new membrane shall replace the existing covering under identical conditions, replicating the exact geometry, shape, curvature, and pattern of folds of the existing installation to ensure complete architectural and structural continuity. The assembly accessories shall be replaced by new certified ones.
- **Tensioning and Hardware Integration:** Secure the Serge Ferrari membrane using high-grade stainless steel tensioning hardware, edge ropes, and proprietary fastening details designed to withstand dynamic wind loads and environmental exposure without sagging or stretching.
- **Final paint** specific color requirements: Main structure in a mix of *Verde Esmeralda* (1 Gal), *Negro* (1 Gal), and *Blanco* (3/4 Gal) ; sunshades in *Gris plata*. For the Serge Ferrari Canopy, structure color shall match the existing structure.

#### 2.5 Phase 5 – Canopy Expansion and New Covered Areas:

- **Structural Framing Extensions:** Fabricate, erect, and anchor structural steel extensions to cover previously exposed zones, the main entry, the rear service area, and the specific front expansion zone measuring 4.00 m by 2.00 m (aligned with the shoe store interface and adjacent exterior pathways as observed in photographic and layout records).
- **Polycarbonate and Membrane Integration:** Install transparent 10mm alveolar polycarbonate sheets over designated expansion frameworks, ensuring proper thermal





expansion clearances, secure fastening, and continuous EPDM compression gaskets between the metal structure and panels. Approved panels shall have UV properties.

- **Structural Alignment and Continuity:** Ensure seamless structural and architectural integration between the newly extended areas and the existing main canopy framework, maintaining uniform drainage slopes and load distribution.
- **Electrical work required:** Remove and dispose existing luminaries (5 und) and replace them with new Outdoor wall light, LED, neutral light 4000K, 10 Watts (5 und). The contractor shall submit for COR approval complying with RETILAP

## 2.6 Phase 6 – Architectural Restoration and Site Improvements:

- **Piedra Muñeca Stone Restoration (150 m<sup>2</sup>):** Execute deep cleaning, mechanical grinding, and polishing across the 150 square meters of "Piedra Muñeca" stone flooring and walls, repairing structural cracks, cleaning grout lines, performing complete re-grouting, and applying a breathable silane/siloxane water-repellent protective sealer to prevent staining from traffic and environmental exposure. Cracked areas shall be replaced with new material.
- **Exposed Aggregate Columns Rehabilitation (7 Columns):** Chip away loose aggregate from the seven (7) exposed aggregate columns ("Gravilla Lavada"), patch voids using high-strength structural repair mortar matching the original mix design and texture, pressure wash, and applying an approved protective surface coating. The new gravel shall be completed for the entire square area between joints, rather than only the column area.
- **Surrounding Site and Surface Improvements:** Inspect, level, and restore surrounding exterior pavement and transitional stonework to ensure a uniform, clean, and architecturally cohesive finish integrated with the modernized canopy structure.

## 2.7 Phase 7 – Refurbishment of Existing Canopy Components:

- **Gutter and Downspout Maintenance:** Clean, flush, test, and repair all roof gutters and drainage downspouts associated with the canopy system to ensure positive drainage slopes, eliminate standing water, and prevent overflow onto seating and pedestrian areas.
- **Front Glazing Supply and installation:** Supply and install new laminated-tempered 4+4 glass for the 7.00 meters in length by 3.10 meters in height, replacing damaged panes, renewing structural EPDM gaskets, and securing framing connections.
- **Rear Windbreak Glass Supply and installation:** supply and install new laminated-tempered 4+4 glass for the 11.00 meters in length by 1.60 meters in height of the back area of the coffee to ensure structural stability and wind protection efficacy.



## 2.8 Phase 8 – Final Testing, Commissioning, Documentation, and Project Closeout:

- **Watertightness Testing:** Conduct rigorous water hose testing on all newly installed polycarbonate roof joints, structural intersections, canopy extensions, and glazing assemblies in the presence of the Contracting Officer's Representative (COR) to verify complete waterproofing efficacy.
- **Punch-List Correction:** Address and completely resolve all pre-final inspection punch-list items, structural adjustments, or cosmetic corrections to the satisfaction of the Government.
- **Final Project Cleanup:** Perform a thorough, comprehensive final cleaning of all newly renovated canopy elements, alveolar polycarbonate surfaces, glass assemblies, restored stone flooring, and surrounding compound pavement. Remove all construction debris, welding slag, cutting residues, and surplus materials from the compound.
- **Project DOSIER Delivery:** Compile and submit the final project DOSIER, incorporating Autodesk Inventor structural calculation memories, shop drawings, as-built drawings, operation and maintenance (O&M) manuals, HSEQ compliance records, manufacturer material warranties, and executed Contractor workmanship warranty certificates.

## 3 COORDINATION AND OVERSIGHT

**COR Oversight:** The FAC Project Civil Engineer shall serve as the COR, providing technical oversight, monitoring progress, and reviewing submittals.

**Communication:** Regular coordination meetings will be established to discuss progress, schedule updates, and any constraints related to Consular operations.

**Inspection:** The COR reserves the right to perform random inspections to ensure compliance with the SOW, safety protocols, and quality standards (QA/QC).

**Work Stoppage:** The COR has the authority to order work stoppage if safety procedures are not followed or if the quality of materials/workmanship deviates from the approved submittals.

## 4 GOVERNMENT RESPONSIBILITIES

The Government will provide unencumbered access to the designated work site and approved storage/sanitary zones during authorized working hours.

The Contracting Officer's Representative (COR) will review and approve or reject submittals, Autodesk Inventor design dossiers, shop drawings, and material samples within five (5) business days of formal submission.



The Government will facilitate security background checks (RSO Namechecks) and process Visitor Access Requests (VARs) submitted in accordance with the established security timelines.

The COR will perform periodic quality assurance inspections, witness critical hold points, and issue final project acceptance upon verification of contract compliance.

## 5 MATERIALS

All materials supplied under this contract must be new, commercial-grade, first-quality, manufacturer-certified, compatible with existing compound infrastructure, and free of defects.

- **Structural Steel:** Structural rectangular steel tubing for framing, columns, and support elements, conforming to ASTM A500 Grade B.
- **Polycarbonate Panels:** Transparent alveolar polycarbonate sheets with a 10 mm thickness, UV-protected, impact-resistant, high light-transmission, and rated for exterior weathering under tropical conditions.
- **Architectural Membrane:** High-tenacity PVC-coated composite architectural tensile membrane technology (**Serge Ferrari** system, matching exact manufacturer specifications of existing installations).
- **Fasteners & Anchors:** 5/8" female-type expansion or chemical anchor bolts for column base connections.
- **Welding Consumables:** GMAW wire and shielding gases compliant with AWS D1.1 structural welding code requirements.
- **Paints and Coatings:** Pintuco industrial-grade enamel coating system and compatible rust-inhibitive primer as specified and approved by the U.S. Embassy.
- **Gaskets & Sealants:** Commercial-grade EPDM structural glazing gaskets and mildew-resistant exterior silicone sealants.
- **Equipment**
  - The Contractor shall provide all construction machinery, scaffolding, mobile elevated work platforms (MEWPs), GMAW welding machines, diamond polishing pads, pressure washers, rigging gear, safety harnesses, and hand tools required to execute the work safely and efficiently.
  - All electrical tools, welding generators, and compressors must be inspected, grounded, equipped with Ground Fault Circuit Interrupters (GFCIs), and compliant with OSHA electrical safety standards.
  - Equipment generating excessive noise or exhaust must be operated in close coordination with compound facility management to minimize operational disruption during consular working hours.



- All contractor tools and equipment must be organized and stored exclusively within the assigned staging area when not in active use.

## 6 CONSTRUCTION REQUIREMENTS BY PHASE

### 6.1 Phase 1 – Investigation, Site Assessment and Engineering Design

Conduct comprehensive technical site visits to understand exact requirements and perform pre-engineering analysis.

Field-verify all dimensions, site elevations, and structural connection interfaces across all designated canopy zones.

Develop complete structural design models utilizing Autodesk Inventor software, including comprehensive engineering calculation memories, finite element analysis (FEA) where applicable, and shop drawings to be formally submitted as part of the project DOSIER.

Submit all structural designs, calculation memories, and product submittals for formal review and approval by the COR prior to commencing any off-site fabrication.

### 6.2 Phase 2 – Material Procurement and Off-Site Fabrication

Procure all certified raw materials, including structural rectangular steel tubing conforming to ASTM A500 Grade B, 10mm alveolar transparent polycarbonate sheets, Serge Ferrari architectural tensile membrane materials, 5/8" female-type anchor bolts, Pintuco industrial-grade enamel coatings and compatible rust-inhibitive primers, EPDM structural gaskets, and stainless steel tensioning hardware.

Fabricate primary framing, beams, and support members using rectangular steel tubing in strict accordance with the approved Autodesk Inventor shop drawings and calculation memories.

Manufacture structural columns utilizing structural rectangular tubing subjected to precision roll-forming according to the approved engineering geometry.

Fabricate and assemble decorative and structural lattices via high-precision laser cutting according to the approved architectural layouts.

Execute all structural steel assembly and welding exclusively through the Gas Metal Arc Welding (GMAW) process performed by certified welding personnel under AWS D1.1 structural welding code requirements.

Perform a thorough initial cleaning and surface preparation of all fabricated steel elements to remove oils, mill scale, and residues to SSPC-SP 11 standards prior to the application of the specified rust-inhibitive primer and multi-coat Pintuco industrial enamel paint system.



### 6.3 Phase 3 – Site Preparation and Demolition

Mobilize to the compound, establish temporary facilities, and occupy the designated work and staging area assigned by the Embassy for performing all project operations.

Utilize temporary restrooms assigned based on overall site availability and concurrent projects in execution; the Contractor shall be strictly responsible for the complete cleaning, maintenance, and upkeep of these assigned sanitary facilities, as the Embassy assumes no responsibility or liability for their cleaning or maintenance.

Maintain the designated work and staging area in a clean, orderly, and well-organized condition at all times, ensuring all contractor tools, equipment, and materials are properly stored exclusively within this assigned zone.

Acknowledge and accept that the Embassy assumes no responsibility, liability, or custodianship for any lost, stolen, or damaged contractor materials, tools, or equipment left within the compound or assigned storage areas.

Erect heavy-duty temporary construction barriers, dust partitions, and protective walkways to segregate the work zone from adjacent active compound areas.

Carefully dismantle and remove existing glass roof panels and degraded structural elements without damaging surrounding compound finishes.

### 6.4 Phase 4 – Canopy Modernization and Structural Installation

Erect newly fabricated structural steel columns and anchor them securely to the foundation base using 5/8" female-type anchor bolts under strict HSEQ and high-altitude safety supervision.

Align, level, and secure the main structural steel framing components, incorporating structural expansions aligned with site geometry (including the main oval canopy, the small oval annex, the rear wood-framed canopy, the lateral wing, and the 4.00 m x 2.00 m front expansion zone near the shoe store interface as observed in site layout and photographic records).

Furnish and install new architectural tensile membrane covering (supply and installation contract format) utilizing **Serge Ferrari** composite membrane technology (matching exact manufacturer specifications). The new membrane shall replace the existing covering under identical conditions, replicating the exact geometry, shape, curvature, and pattern of folds of the existing installation to ensure complete architectural and structural continuity.

Secure the Serge Ferrari membrane using high-grade stainless steel tensioning hardware, edge ropes, and proprietary fastening details designed to withstand dynamic wind loads and environmental exposure without sagging or stretching.



### 6.5 Phase 5 – Canopy Expansion and New Covered Areas

Fabricate, erect, and anchor structural steel extensions to cover previously exposed zones, the main entry, the rear service area, and the specific front expansion zone measuring 4.00 m by 2.00 m (aligned with the shoe store interface and adjacent exterior pathways as observed in photographic and layout records).

Install transparent 10mm alveolar polycarbonate sheets over designated expansion frameworks, ensuring proper thermal expansion clearances, secure fastening, and continuous EPDM compression gaskets between the metal structure and panels.

Ensure seamless structural and architectural integration between the newly extended areas and the existing main canopy framework, maintaining uniform drainage slopes and load distribution.

### 6.6 Phase 6 – Architectural Restoration and Site Improvements

Execute deep cleaning, mechanical grinding, and polishing across the 150 square meters of "Piedra Muñeca" stone flooring and walls, repairing structural cracks, cleaning grout lines, performing complete re-grouting, and applying a breathable silane/siloxane water-repellent protective sealer to prevent staining from traffic and environmental exposure.

Chip away loose aggregate from the seven (7) exposed aggregate columns ("Gravilla Lavada"), patch voids using high-strength structural repair mortar matching the original mix design and texture, pressure wash, and apply an approved protective surface coating.

Inspect, level, and restore surrounding exterior pavement and transitional stonework to ensure a uniform, clean, and architecturally cohesive finish integrated with the modernized canopy structure.

### 6.7 Phase 7 – Refurbishment of Existing Canopy Components

Clean, flush, test, and repair all roof gutters and drainage downspouts associated with the canopy system to ensure positive drainage slopes, eliminate standing water, and prevent overflow onto seating and pedestrian areas.

Realign, service, and rehabilitate the front glass elements measuring 7.00 meters in length by 3.10 meters in height, replacing damaged panes, renewing structural EPDM gaskets, and securing framing connections.

Inspect, realign, secure, and seal the rear windbreak glass assembly measuring 11.00 meters in length by 1.60 meters in height to ensure structural stability and wind protection efficacy.





## 6.8 Phase 8 – Final Testing, Commissioning, Documentation, and Project Closeout

Conduct rigorous water hose testing on all newly installed polycarbonate roof joints, structural intersections, canopy extensions, and glazing assemblies in the presence of the COR to verify complete waterproofing efficacy.

Address and completely resolve all pre-final inspection punch-list items, structural adjustments, or cosmetic corrections to the satisfaction of the Government.

Perform a thorough, comprehensive final cleaning of all newly renovated canopy elements, alveolar polycarbonate surfaces, glass assemblies, restored stone flooring, and surrounding compound pavement. Remove all construction debris, welding slag, cutting residues, and surplus materials from the compound.

Compile and submit the final project DOSIER, incorporating Autodesk Inventor structural calculation memories, shop drawings, as-built drawings, operation and maintenance (O&M) manuals, HSEQ compliance records, manufacturer material warranties, and executed Contractor workmanship warranty certificates.

## 7 QUALITY CONTROL (QA/QC)

The Contractor shall implement a comprehensive Quality Control (QC) plan covering all phases of engineering design, Inventor modeling, GMAW welding inspection, surface coating thickness verification, stone polishing, and structural installation.

- **Mock-ups:** The Contractor shall construct a physical mock-up of the stone polishing/re-grouting process (approx. 1 m<sup>2</sup>), a GMAW welded steel joint sample, and a sample polycarbonate/gasket roof assembly for COR inspection and written approval prior to executing full-scale installation.
- **Testing & Inspections:** Nondestructive weld inspections and water hose testing shall be performed during Phase 8 to verify structural integrity and complete watertightness prior to final acceptance.
- **COR Inspection Authority:** The COR reserves the right to perform random inspections at any time to ensure strict compliance with the SOW, safety protocols, and quality standards (QA/QC).
- **Work Stoppage Authority:** The COR holds the explicit authority to order immediate work stoppage if safety procedures are not followed or if the quality of materials/workmanship deviates from the approved submittals.



## 8 SAFETY REQUIREMENTS & HSEQ SUPERVISION

The Contractor shall execute all operations under the continuous on-site accompaniment and supervision of dedicated HSEQ personnel.

- **Height Safety:** All work at heights exceeding 1.8 meters (6 feet) shall be performed strictly by certified personnel equipped with full-body harnesses, shock-absorbing lanyards, certified tie-off anchor points, and managed under an active Fall Protection Plan.
- **Personal Protective Equipment (PPE):** All personnel on site shall wear approved safety helmets, high-visibility vests, safety glasses, steel-toed footwear, leather welding gloves, and hearing protection as required.
- **Hot Work & Fire Prevention:** A valid Hot Work Permit shall be secured from the Post Safety Office prior to any GMAW welding, cutting, or grinding operations. A dedicated fire watch equipped with a 20lb ABC dry chemical fire extinguisher shall be maintained during and for 30 minutes following all hot work.
- **Hazard Communication:** Material Safety Data Sheets (MSDS) / Safety Data Sheets (SDS) for all chemical products (sealants, Pintuco paints, solvents, adhesives) shall be maintained on site and made available to the COR upon request.

## 9 CODES AND STANDARDS

All work, engineering designs, materials, and installations shall comply with the latest editions of the following governing codes and standards:

- **IBC (International Building Code):** Structural design loads and life safety.
- **ASCE 7:** Minimum Design Loads and Associated Criteria for Buildings and Other Structures.
- **AISC (American Institute of Steel Construction):** Steel construction specifications.
- **AWS D1.1 (American Welding Society):** Structural welding code - Steel (governing GMAW processes).
- **NFPA (National Fire Protection Association):** NFPA 101 (Life Safety Code) and NFPA 241 (Standard for Safeguarding Construction, Alteration, and Demolition Operations).
- **OSHA (Occupational Safety and Health Administration):** 29 CFR 1926 (Safety and Health Regulations for Construction).
- **ASTM International:** Standard specifications for steel tubing (ASTM A500), plastics, coatings, and sealants.

## 10 DELIVERABLES

The Contractor shall submit the following documentation to the COR in accordance with the project schedule:

U.S. DEPARTMENT of STATE

13 | Page

Bureau of Overseas Buildings Operations Statement of Work (SOW)  
**Bogotá – Visa Patio Roof Replacement – Compound**  
Statement of Work for Construction Services





Detailed baseline project schedule broken down by the eight (8) operational phases.

### 10.1 Comprehensive Project DOSIER:

- Including Autodesk Inventor 3D models, engineering calculation memories, shop drawings, and laser-cutting geometry layouts (Phase 1).
- Manufacturer data sheets and physical material samples (10mm alveolar polycarbonate, Serge Ferrari architectural tensile membrane, Pintuco paint specifications, 5/8" anchors) (Phase 1).
- Quality Control (QC), HSEQ, and Safety Plan (Phase 1).
- Daily progress reports, welding inspection logs, and weekly photographic logs (Throughout).
- Mandatory test and inspection reports, including weld test reports and water tightness test results (Phase 8).
- As-built drawings reflecting final site conditions (Phase 8).
- Manufacturer product warranties and executed Contractor workmanship warranty certificates (Phase 8).
- Operation and Maintenance (O&M) manuals for Pintuco coating systems, Serge Ferrari membrane, and polycarbonate roofing (Phase 8).

## 11 SCHEDULE

The total execution period for the project shall be established based on the formal commercial proposal, structured across the eight (8) defined operational phases from the official Notice to Proceed (NTP) issuance date.

- **Phase 1 – Investigation, Site Assessment and Engineering Design:** Field verification, Autodesk Inventor design dossier generation, and engineering submittal approvals.
- **Phase 2 – Material Procurement and Off-Site Fabrication:** Raw material acquisition, structural steel fabrication, roll-forming, laser-cut lattice assembly, GMAW welding, and Pintuco surface painting.
- **Phase 3 – Site Preparation and Demolition:** Compound mobilization, work area setup, sanitary facility allocation, protective barrier erection, and controlled demolition of existing glass and elements.
- **Phase 4 – Canopy Modernization and Structural Installation:** Column erection via 5/8" female anchors, primary framework setup, and installation of the Serge Ferrari architectural membrane.



- **Phase 5 – Canopy Expansion and New Covered Areas:** Expansion framing for uncovered zones, rear service areas, and the 4.00 m x 2.00 m front expansion zone with 10mm alveolar polycarbonate.
- **Phase 6 – Architectural Restoration and Site Improvements:** Piedra Muñeca stone polishing/re-grouting (150 m<sup>2</sup>) and exposed aggregate column restoration (7 columns).
- **Phase 7 – Refurbishment of Existing Canopy Components:** Gutter/downspout maintenance and front/rear glazing rehabilitation.
- **Phase 8 – Final Testing, Commissioning, Documentation, and Project Closeout:** Water hose testing, punch-list resolution, final cleanup, and project DOSIER submission.

| Phase                                                                       | Duration (Days)         |
|-----------------------------------------------------------------------------|-------------------------|
| Phase 1 – Investigation, Site Assessment and Engineering Design             | 20 Days                 |
| Phase 2 – Material Procurement and Off-Site Fabrication                     | 20 Days                 |
| Phase 3 – Site Preparation and Demolition                                   | 5 Days                  |
| Phase 4 – Canopy Modernization and Structural Installation                  | 25 Days                 |
| Phase 5 – Canopy Expansion and New Covered Areas                            | 10 Days                 |
| Phase 6 – Architectural Restoration and Site Improvements                   | 10 Days                 |
| Phase 7 – Refurbishment of Existing Canopy Components                       | 5 Days                  |
| Phase 8 – Final Testing, Commissioning, Documentation, and Project Closeout | 5 Days                  |
| <b>Total Duration</b>                                                       | <b>90 calendar Days</b> |



## 12 SUBMITTALS

All submittals, including the Autodesk Inventor design dossier, shall be transmitted electronically to the COR in PDF format during Phase 1.

Physical samples of Pintuco paint finishes, 10mm alveolar polycarbonate, Serge Ferrari membrane, and sealing gaskets shall be delivered directly to the COR's office for physical review.

No procurement, metal fabrication, or site installation shall commence until the corresponding submittals have received formal written approval ("Approved" or "Approved as Noted") from the Government.

## 13 INSPECTIONS

The COR, alongside compound facility engineers and HSEQ representatives, shall conduct routine unannounced inspections during active construction.

Mandatory Hold Points:

The Contractor shall provide 24 hours advance notice for the following mandatory inspection milestones:

Review and sign-off on the Autodesk Inventor calculation dossier and shop drawings prior to steel fabrication (Phase 1).

Inspection of GMAW structural welds and steel surface preparation prior to Pintuco coating application (Phase 2).

Inspection of column base anchor installations using 5/8" female anchors prior to final torquing (Phase 4).

Pre-sealant inspection for polycarbonate joints, membrane fixings, and glazing assemblies (Phases 4, 5, and 7).

Final water hose test of the complete canopy roof and glazing system (Phase 8).

## 14 WARRANTY

The Contractor shall provide a written one-year (1) minimum warranty covering all metal-mechanical workmanship, structural installations, 5/8" anchorage stability, waterproofing efficacy, membrane tensioning, and Pintuco paint adhesion against peeling, blistering, rust breakthrough, or premature degradation.



## 15 ACCEPTANCE CRITERIA

- Final acceptance of the work will be granted by the COR only after the successful completion of the following criteria:
- 100% completion of all scope items in accordance with approved Autodesk Inventor designs, shop drawings, and technical specifications.
- Successful passing of all quality control checks, welding inspections, water tightness tests, and HSEQ safety audits.
- Complete resolution and sign-off on all pre-final inspection punch-list items ("snag list").
- Submission and formal approval of the complete project DOSIER, including as-built drawings, O&M manuals, calculation memories, and warranty certificates.
- Complete removal of all construction debris, equipment, and surplus materials from the compound (Phase 8).

## 16 CLEANUP

The Contractor shall maintain the work area in a clean, orderly, and safe condition daily throughout all phases.

Upon completion of Phase 8, the Contractor shall perform a thorough final cleaning of all newly renovated canopy elements, alveolar polycarbonate surfaces, Serge Ferrari membrane, glass surfaces, stone flooring (150 m<sup>2</sup>), and surrounding compound pavement.

All welding slag, metal cuttings, dust, adhesive residue, paint splatters, and packaging debris shall be entirely removed.

## 17 PROTECTION OF EXISTING FACILITIES

The Contractor shall erect heavy-duty temporary construction barriers, dust partitions, and protective walkways during Phase 3 to segregate the work zone from adjacent active compound areas.

The Contractor shall protect all existing adjacent finishes, landscaping, and exterior furniture from welding sparks, paint overspray, debris, and mechanical impacts during construction.

Any damage inflicted by the Contractor to existing compound infrastructure, structures, or landscaping shall be repaired or replaced to its original condition at the Contractor's sole expense.

## 18 COORDINATION REQUIREMENTS

The Contractor shall coordinate all construction operations, material deliveries, and contractor personnel arrivals with U.S. Embassy Security and Facility Management at least 48 hours in advance.



Utility shutdowns (if required for electrical or structural tie-ins) must be requested in writing at least five (5) business days in advance and executed strictly during approved off-peak maintenance windows.

Working hours shall be restricted to Monday through Friday, 08:00 to 17:00, unless explicit written authorization for overtime or weekend work is granted by the COR and Security Office.

### 18.1 Criteria for Contractor Selection & Evaluation

To ensure a competitive, transparent, and fair evaluation process, proposals will be assessed based on the following balanced criteria:

#### 18.2 Relevant Experience:

Demonstrated past performance in metal-mechanical fabrication, structural steel erection, architectural tensile membranes (such as Serge Ferrari), or similar commercial/institutional canopy projects.

*Flexibility Adjustment:* Acceptance of general civil and structural remodeling experience, avoiding overly restrictive past-performance thresholds that limit market participation.

#### 18.3 Technical Proposal & Methodology:

Soundness of the construction methodology, compliance with safety and HSEQ standards, realistic scheduling across the eight (8) phases, and quality of engineering submittals.

*Flexibility Adjustment:* Focus on core technical feasibility and clear understanding of the scope rather than rigid proprietary engineering formats.

#### 18.4 Financial Proposal / Commercial Offer:

Competitiveness and completeness of the lump-sum pricing, unit rates, and adherence to the quantity chart.

*Flexibility Adjustment:* Evaluation based on overall market reasonableness rather than discarding bids for minor formatting variances in cost breakdowns.

#### 18.5 Administrative & Legal Compliance:

Submission of mandatory administrative documents, company registration, tax compliance, and ability to meet the RSO security vetting timeline (namechecks) without overly burdensome initial pre-qualification hurdles.



## 19 QUANTITY CHART

Below is the quantity chart. The quantities are approximate, and the contractor must confirm and execute accordingly.

| PROJECT ACTIVITIES                                                               |     |      |        |      |
|----------------------------------------------------------------------------------|-----|------|--------|------|
| QUANTITIES ARE APPROXIMATE. THE CONTRACTOR MUST CONFIRM AND INSTALL ACCORDINGLY  |     |      |        |      |
| CAFETERIA CANOPY MODERNIZATION                                                   |     |      |        |      |
| Description                                                                      | QTY | Unit | \$ /Un | COP  |
| Phase 1 – Investigation, Site Assessment and Engineering                         | 1   | LS   |        |      |
| Phase 2 – Material Procurement and Off-Site Fabrication                          | 1   | LS   |        |      |
| Phase 3 – Site Preparation and Demolition                                        | 1   | LS   |        |      |
| Phase 4 – Canopy Modernization and Structural Installation. Serge Ferrari canopy | 150 | m2   |        |      |
| Phase 5 – Canopy Expansion and New Covered Areas                                 | 270 | m2   |        |      |
| Phase 6 – Architectural Restoration and Site Improvements                        | 1   | LS   |        |      |
| Phase 7 – Refurbishment of Existing Canopy Components                            | 1   | LS   |        |      |
| Phase 8 – Final Testing, Commissioning, Documentation, and Project Closeout      | 1   | LS   |        |      |
| Sub-Total                                                                        |     |      |        | \$ - |
|                                                                                  |     |      |        |      |
| Total Direct costs                                                               |     |      |        | \$ - |
| Management                                                                       |     |      |        | \$ - |
| Unforeseen                                                                       |     |      |        | \$ - |
| Profit                                                                           |     |      |        | \$ - |
| VAT (Over profit only)                                                           |     |      | 19%    | \$ - |
| DBA                                                                              |     |      |        | \$ - |
| Total Indirect costs                                                             |     |      |        | \$ - |

### Clarifying Note:

- **Quantities** The quantities presented in this chart are estimates based on the information available during the design phase. It is the absolute responsibility of the contractor to



conduct a site visit and field verification to confirm these quantities prior to the submission of their formal proposal. Any discrepancies in quantities must be reported to the COR during the solicitation period.

- **Final Acceptance & Closeout** Final acceptance is subject to the COR's verification that the structure meets all structural, electrical, and safety requirements. The Contractor shall request a final inspection only when all work, including the 'Punch List' repairs, is fully completed. Final payment is contingent upon the submission of As-Built drawings, final warranties, and all required certifications.
- **Site Control and Waste Management** the Contractor must maintain strict control of all tools; tools cannot be left in the work area when not in use. The Contractor is responsible for removing all construction debris and trash from the site daily. The Embassy reserves the right to stop work if these site control measures are not followed.

## 20 SECURITY NAME CHECK AND VISITOR ACCESS REQUESTS (VAR)

### 20.1 Name check Process:

All contractor personnel must undergo a mandatory **Name check Process** (RSO Namecheck). This process has an estimated duration of six (6) weeks.

The Contractor shall not schedule any site activities requiring the presence of personnel until the U.S. Embassy has provided formal notification that the security vetting (RSO Namecheck) for said personnel has been successfully completed and approved.

The Contractor is responsible for gathering and submitting all required documentation for this vetting process at least seven (7) weeks prior to the anticipated start date.

### 20.2 Visitor Access Requests (VAR):

Once the security vetting process is officially approved by the Embassy, the Contractor must submit a Visitor Access Request (VAR) for every person and/or vehicle entering the compound.

All VARs must be submitted to the COR no later than three (3) working days prior to the required access date.

Any personnel appearing at the compound without a previously submitted and approved VAR, or whose security vetting has not been finalized, will be denied access to the site. The Embassy will not be held responsible for project delays caused by the Contractor's failure to adhere to these security timelines.

WARNING: This document is the property of the U.S. Government. Further reproduction and distribution are prohibited without the express written approval of: U. S. Department of State, Bureau of Overseas Buildings Operations, ATTN: Contracting Officer, Washington, D.C., 20520

## ATTACHMENT #2

### PROJECT ACTIVITIES

**QUANTITIES ARE APPROXIMATE. THE CONTRACTOR MUST CONFIRM AND INSTALL ACCORDINGLY**

| <b>CAFETERIA CANOPY MODERNIZATION</b>                                            |            |             |               |            |
|----------------------------------------------------------------------------------|------------|-------------|---------------|------------|
| <b>Description</b>                                                               | <b>QTY</b> | <b>Unit</b> | <b>\$ /Un</b> | <b>COP</b> |
| Phase 1 – Investigation, Site Assessment and Engineering                         | 1          | LS          |               |            |
| Phase 2 – Material Procurement and Off-Site Fabrication                          | 1          | LS          |               |            |
| Phase 3 – Site Preparation and Demolition                                        | 1          | LS          |               |            |
| Phase 4 – Canopy Modernization and Structural Installation. Serge Ferrari canopy | 150        | m2          |               |            |
| Phase 5 – Canopy Expansion and New Covered Areas                                 | 270        | m2          |               |            |
| Phase 6 – Architectural Restoration and Site Improvements                        | 1          | LS          |               |            |
| Phase 7 – Refurbishment of Existing Canopy Components                            | 1          | LS          |               |            |
| Phase 8 – Final Testing, Commissioning, Documentation, and Project Closeout      | 1          | LS          |               |            |
| Sub-Total                                                                        |            |             |               | \$ -       |

|                             |  |  |                           |      |
|-----------------------------|--|--|---------------------------|------|
|                             |  |  | <b>Total Direct costs</b> | \$ - |
| Management                  |  |  |                           | \$ - |
| Unforeseen                  |  |  |                           | \$ - |
| Profit                      |  |  |                           | \$ - |
| VAT (Over profit only)      |  |  | 19%                       | \$ - |
| DBA                         |  |  |                           | \$ - |
| <b>Total Indirect costs</b> |  |  |                           | \$ - |





# Safety Requirements for Contractors & Subcontractors

## SAFETY, HEALTH, & ENVIRONMENTAL MANAGEMENT PROGRAM

The purpose of this document is to ensure compliance with current safety regulations as well as the health and safety of personnel avoiding any damage or injury. The contractor will accept all legal requirements or regulations currently enforced that concern safety for staff and workers, as well as for the public who directly or indirectly may be affected by the work.

The Contracting Officer's Representative (COR) will ensure all the Safety Requirements are implemented before and during the project and, in case it is needed, the COR will be in contact with the Post Occupational Safety and Health Officer (POSHO) to ensure all the safety standards are followed and to share any related information if possible.

The contractor will follow the more restrictive standard between the Safety and Health Requirements Manual established by the US Army Corps of Engineers

([http://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM\\_385-1-1.pdf](http://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM_385-1-1.pdf)) or the Colombian laws on industrial safety as established by the Ministry of Labour as follows:

### 1. General Safety Requirements

- a. The contractor must demonstrate understanding of his/her responsibilities related to the safety requirements by addressing hazards in preplanning processes and meetings.
- b. Prior to starting a project, the contractor is required to review the work site and identify hazards that may occur while performing the job.
- c. The contractor is expected to provide a "competent person" to implement Site health and safety plan and to oversee its compliance. A competent person is an individual who, by way of training and/or experience, is knowledgeable of applicable standards, is capable of identifying workplace hazards relating to the specific operation, is designated by the employer, and has authority to take appropriate actions.
- d. The contractor is required to provide the proof of payment of local insurances (EPS, ARL) of all the employees that will be involved in the project. Likewise, the contractor is required to provide monthly payment documents of local insurance for the length of work.
- e. The contractor will conduct a safety briefing before starting daily work.
- f. Contractor personnel who have signs of drunkenness or who are under the influence of stimulants or hallucinogens will be denied entry to the work area.
- g. The contractor shall ensure individuals working at the site are trained and aware of potential hazards. The contractor shall ensure that these individuals are provided with proper safety equipment to prevent accidental injury in accordance with the requirements of the contract.
- h. The contractor must accept the safety standards set by the US Embassy.
- i. All workers will remove all chains, rings, watches and/or bracelets during the execution of work.
- j. Smoking is prohibited at the work site and will use only designated area for smokers.
- k. The contractor will report accidents to the COR who will pass the proper data to the POSHO or Safety Coordinator.

## 2. Barricading and Warning Signs

The contractor must place provisional barricades and warning signs to maintain a safe and accessible path-of-travel for all pedestrians, including those with disabilities, in order to avoid accidents to third parties. Barricades alert others about hazards created by construction activities and should be used to control vehicular traffic around the work site as well.

Erect and maintain for the duration of the Contract proper barricades including fencing material, traffic cones, caution tape and temporary curb ramps complying with all access codes and regulations.

Ensure that no construction materials be stored and/or placed on the path-of travel.

Maintain the construction barriers in a sound, neat, and clean condition.

## 3. Personal Protective Equipment (PPE) Requirements

- a. Contractor personnel must use personal protective equipment (PPE) required and in accordance with the contracted work.
- b. The contractor is required to inspect and maintain spare PPE in case of damage, deterioration, or loss of the equipment.
- c. The PPE used must meet the technical specifications required by Colombian regulation and international standards.
- d. Sharp cutting tools must be carried in Tools Carrying Cases; under no circumstances they are to be carried in uniform pockets.
- e. In those tasks where PPE certified is required, the contractor must provide the current certification.
- f. The contractor must provide records of PPE received for all the employees involved in the task.

## 4. Safety inspections requirements

- a. All tools, equipment and/or machinery that will be used in the execution of the contracted work must be inspected by a competent person before starting the project.
- b. COR and/or Safety representatives of the US Embassy may inspect equipment, tools and/or machinery of the contractor at any time and may request to change it if deemed necessary.

## 5. Hand and Power Tool Safety

- a. The contractor must ensure the safety of tools and equipment used by its employees.
- b. Inspected at regular intervals and maintain in good condition all tools in accordance with the manufacture's specifications.
- c. Ensure that tools are used for their intended purposes.

## 6. Emergency Response Requirements

- a. In case of an emergency within the US Embassy facilities and/or during the execution of the contracted work, contractor personnel must follow the instructions given by the Embassy representative (escort) who is supervising the work, or security personnel.
- b. The contractor must not obstruct emergency response equipment such as first aid kits, fire extinguishers, fire cabinets, defibrillators, spill kits, stretchers, eye wash stations or safety signs.

## 7. High Risk Work Requirements

- a. The contractor shall submit certificates of training for each person who will conduct the task. These certificates must be submitted before starting the execution of the project.
- b. The contractor shall prepare a work permit specifically for the task and must be provided to the COR before the initiation of work.
- c. The contractor must send a risk assessment of the task in a minimum period of eight working days before commencement of work. The POSHO or Safety Coordinator will review the document and make any comment it deems necessary.
- d. The execution of high-risk activities will be carried out with a minimum of two people present that may give first aid or notice in case of emergency.

## 8. Electrical Safety

- a. The contractor shall fully comply with the local regulation and the Embassy policies related with electrical safety work practices and work-de energized to prevent any incident that may impact the health of personnel and Embassy and residential units' electrical systems
- b. It is Department policy that energized “live” parts to which an employee may be exposed must be de-energized before the employee works on or near them. If de-energizing them introduces or increased hazards or is unfeasible, you must contact your point of contact at the Embassy to report such situation before carrying out the work.
- c. All personnel conducting electrical work shall be sufficient trained and considered as competent persons prior to performing the work.
- d. The contractor should identify any potential sources of electrical energy likely to cause death, injury, or serious physical harm.
- e. Ensure all work is performed in accordance with local regulation and U.S. standards.
- f. The contractor must provide the appropriate equipment and tools for the work in compliance with the requirements of the contract.
- g. During the execution of work on the electrical system, contractor personnel must remove conductive jewelry such as watches, rings, chains and/or bracelets.
- h. Non-conductive (fiberglass) ladders should be used for electrical work or near electrical hazards.

## 9. Fall Protection Requirements

All work performed at more than 2 meters (6.5ft) is considered work at heights based on local laws, therefore the contractor must strictly comply with local Resolution 4274/2021:

- a. All equipment to work at elevated surfaces must meet at least the ANSI Z359.1 standards or European counterparts.
- b. All contractor personnel using equipment for work at heights must follow the instructions and warnings associated with such equipment.
- c. Contractor personnel will not use as an anchor point for work, ladders, piping or pipe supports.
- d. If an anchor point does not offer the recommended resistance for fall protection (5000lbs), the contractor must provide protective equipment for heights with dampers that may decrease the impact force.
- e. Scissor scaffolds are prohibited. Only use multi directional/modular scaffolding properly certified.
- f. Use dielectric ladders to work with electricity and areas with electrical influence.
- g. It is forbidden to stand on or above the second top rung of the ladders.
- h. All personnel performing work above 5 ft (1.5mts) must use at least the following personal protection equipment: helmet (dielectric if needed), with chin strap and three support points, safety glasses that protect eyes from impacts, with UV protection; hearing protection if necessary, gloves with high resistance to abrasion, slip reinforced toe boots, work clothes according to weather conditions and risk factors and proper fall protection systems.
- i. The contractor must submit to the COR, in a minimum period of eight working days before starting the work, the training certificates of all workers who will perform the job. The certificate must comply with the provisions of Resolution 3673/ 2008. A re-training should be provided to employees at least once a year as required by local legislation.

## 10. Scaffolding Requirements

- a. The contractor is responsible for proving safe conditions when using, erecting and breaking down scaffolding.
- b. Scaffolds should be erected and dismantled by competent workers, under the supervision of knowledgeable and experienced supervisors.
- c. Scaffolds should be erected on a rigid surface, capable of carrying the maximum intended load without settling or displacement.
- d. Ensure scaffold is equipped with standard guardrails and toe boards on all open sides and ends of platforms four to ten feet in height.
- e. Provide an access ladder or equivalent safe access.
- f. Supported scaffolds with a height to base width ratio of more than four to one (4:1) shall be restrained from tipping by guying, tying, bracing, or equivalent means.

## 11. Requirements for Chemical Substance Management

- a. If the contracted task requires the use of chemicals, the contractor must comply with the specifications required by local law or U.S standards for storage, handling and transportation.
- b. The contractor is responsible for verifying the correct handling of each product such as storage, labeling, required PPE, disposal of waste in compliance with safety and environment regulations.
- c. Contractor shall have accessible copies of Safety Data Sheets (SDS) for each chemical brought onto Post's property.
- d. Forward SDSs of hazardous materials to the COR for review.
- e. Use and store all hazardous or flammable chemicals brought on the project site in approved containers.

## 12. Requirements for Lifting loads, use of cranes or elevating work platforms

- a. The contractor must submit to the COR certificates of the equipment (issued by a certified ONAC entity) used for the work (including forklift, cranes, and elevating platforms) and required documents of the vehicles (SOAT, ownership card and mechanical inspections).
- b. The contractor shall send to the COR all the certificates (issued by a certified ONAC entity) of all the slings, chains, shackles, or other elements used for lifting loads.
- c. The contractor shall send to the COR training certificates of all the personnel that will perform the task.
- d. The contractor shall send to the COR the Maintenance Program of the equipment and machinery that will be brought onto the compound.
- e. The contractor shall forward to the COR the loading and unloading procedure prior to the operation.
- f. The contractor must make a plan to ensure the lifting capacity of the crane or arm relative to its load.

## 13. Welding

- a. Before cutting or welding is permitted, the COR shall inspect the area for authorizing the operation to reduce the potential of an uncontrolled ignition of materials.
- b. The contractor shall obtain a hot work permit thru the COR from the POSHO or Safety Coordinator prior to the hot work activity within occupied existing facilities, 40 feet of a building or potential hazard such as a fuel storage tank, and confined spaces regardless of location.
- c. Establish work area barriers according to the job to be performed to protect also pedestrians, these barriers shall comply with OSHA standards and post's hot work policy.
- d. Suitable fire extinguishing equipment shall be maintained on site and in a state of readiness for instant use.
- e. Cutting and welding shall be performed only in areas that are or have been made fire safe. When the task cannot be relocated, the area shall be made safe by removing combustibles or protecting combustibles from ignition sources.
- f. The contractor shall ensure all welder operators and attendants exposed to the hazard use proper welding personal protection equipment.

## 14. Road Safety Requirements

- a. The vehicle must have the basic elements of emergency response. NTC 4532.
- b. Vans and trucks must have vehicle back-up alarms and back-up sensors.
- c. The contractor must submit to the COR the required documents of vehicles (SOAT, ownership card and mechanical inspections).

## 15. Requirements Confined Spaces

- a. For any work to be performed in confined spaces, you must consult with the Safety Office to identify and comply with all the mandatory requirements established by OBO/SHEM.

## 16. Covid-19

The contractor must follow the guidelines and protocols established by the Colombian Government, as well as those issued by the Centers for Disease Control and Prevention (CDC) to prevent the spread of the Covid-19 and to guarantee the health and safety of both contractor personnel and Mission personnel.

## Additional Notes

The Embassy COR will work directly with the contractor ensuring all Safety Requirements are met as describe in this document and in case it is needed the COR will report to the Embassy POSHO or Safety Coordinator any deficiency found before or during the execution of the project.

In case the COR identifies unsafe acts or conditions that could significantly affect the health or safety of Embassy personnel, contractors, subcontractors, third parties or government property, the work can be stopped by the COR until the condition is fixed. If different work conditions appear during the project, the COR can indicate further safety requirements to the contractor.

The COR may share safety related information with the POSHO and Safety Coordinator to guarantee personnel safety and government property conservation.

## Hot Work Permit

Whenever welding or cutting must be done in areas not specifically designed for this type of work, the area should be inspected, and written authorization granted by the individual responsible for the hot work program. This should be done prior to the beginning of any work. A hot work permit is defined as: (1) Any operation or equipment which produces a flame, or which may be a source of ignition for flammable gases and vapors by producing surface temperatures greater than 302°F (150°C). (2) Any maintenance or construction work which, because of friction, will generate a spark (grinding, chipping, drilling, hammering, or any material flow which can create static electric

1. Ensure that the sprinkler system is in service.

2. Sweep floors clean.
3. Wet combustible floors or cover them with sheet metal or other noncombustible material.
4. Remove all flammable liquids and oil deposits from the work area.
5. Move combustible material at least 35 feet away from the work area.
6. Station fire watch personnel with small hose or extinguisher to smother fires started by sparks.
7. Do not work on walls or ceilings containing combustible insulation.
8. This work permit is not valid for confined spaces and tanks. Refer to requirements in section 9.1 and 10.1 of the Safety, Occupational Health, and Environment Management Resource Guide.
9. Remove combustible material from ducts and enclosed equipment.
10. Fire watch personnel must remain at the work area at least one-half hour after the job is completed to suppress any fire and to ensure that there is no fire in adjoining areas.

## Safety Requirements for Contractors & Subcontractors



U.S. Department of State  
Safety, Health and Environmental Management

### MAINTENANCE WORK AUTHORIZATION

*(This permit is valid only for the area and work stated on this permit and only on the date issued)*

#### Permit Issuance Information

|                                                                                                   |                   |
|---------------------------------------------------------------------------------------------------|-------------------|
| Date (mm-dd-yyyy)                                                                                 |                   |
| Permit Issued by                                                                                  | Date (mm-dd-yyyy) |
| <b>Work Assignment Information</b>                                                                |                   |
| Time Started                                                                                      | Time Finished     |
| Building Name and Address                                                                         |                   |
| Floor Number and Location on Floor                                                                |                   |
| Nature of Job                                                                                     |                   |
| <b>Operator Information</b>                                                                       |                   |
| Print Operator's Name and Title                                                                   |                   |
| Operator's Address                                                                                |                   |
| I agree to follow the safety guidelines and instructions necessary to complete this work safely.  |                   |
| Operator Signature                                                                                | Date (mm-dd-yyyy) |
| <b>Supervisory Information</b>                                                                    |                   |
| Supervisor in Charge - Print Name and Title                                                       |                   |
| I agree to enforce the safety guidelines and instructions necessary to complete this work safely. |                   |
| Supervisor Signature                                                                              | Date (mm-dd-yyyy) |
| A copy of this Hot Work Permit is to be maintained in the POSHO's files.                          |                   |

DS-1939  
10-2019

U.S. DEPARTMENT of STATE

U.S. Embassy in Colombia

Carrera 45 # 24B- 27 - (+571) 275.2000 - Bogotá D.C. – Colombia





# Normas de Seguridad y Salud en el Trabajo para Contratistas y Subcontratistas

## SAFETY, HEALTH, & ENVIRONMENTAL MANAGEMENT PROGRAM

El propósito del presente documento es asegurar el cumplimiento de la normatividad vigente así como la salud y seguridad de las personas evitando cualquier tipo de daño o lesión. El contratista acepta todas las regulaciones legales vigentes en materia de seguridad y salud para el personal, así como para el público que directa o indirectamente puede verse afectado por el proyecto.

El Representante del jefe de Contratos (COR) se asegurará que todos los requerimientos de seguridad se implementen antes y durante la ejecución del proyecto y, en caso de que se necesite, el COR estará en contacto con el Oficial de Seguridad y Salud en el Trabajo (POSHO) para garantizar que todos los estándares de seguridad están siendo implementados y para compartir cualquier información relacionada, si así se requiere.

El contratista dará cumplimiento a la norma más restrictiva entre el Manual de Requisitos de seguridad y de salud establecidos por el Cuerpo de Ingenieros del Ejército de los EE.UU

([http://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM\\_385-1-1.pdf](http://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM_385-1-1.pdf)) o las leyes colombianas en materia de seguridad industrial, según lo establecido por el Ministerio de Trabajo de la siguiente manera:

### 1. Requisitos Generales:

- a. El contratista deberá demostrar comprensión de sus responsabilidades relacionadas con los requisitos de seguridad controlando los peligros en los procesos durante planeación inicial y en las reuniones.
- b. Antes de iniciar el proyecto, el contratista deberá revisar el área de trabajo e identificar los peligros y riesgos que pueden repercutir en la ejecución del trabajo.
- c. El contratista deberá proporcionar una “persona competente” para implementar el plan de seguridad y salud en el lugar de trabajo y supervisar su cumplimiento. Una persona competente es una persona que, por medio de capacitación y/o experiencia, conoce las normas aplicables, es capaz de identificar los peligros en el lugar de trabajo relacionados con la operación. Debe ser una persona designada por el contratista y debe tener la autoridad de tomar las medidas y decisiones apropiadas.
- d. El contratista está obligado a presentar las planillas de pago al Sistema General de Seguridad Social del personal que tenga trabajando en el proyecto. Así mismo, el contratista está obligado a enviar mensualmente las planillas vigentes durante el tiempo que dure la labor para la cual fueron contratados.
- e. El contratista realizará una charla de seguridad diaria antes de iniciar la labor.
- f. Está prohibido el ingreso de personal contratista que presente signos de embriaguez o que se encuentre bajo efectos de sustancias estimulantes o alucinógenas.
- g. El contratista deberá asegurarse que las personas trabajando en el proyecto estén capacitadas y conozcan los peligros potenciales asociados a la labor. El contratista debe asegurarse que estas personas reciban los equipos apropiados para evitar lesiones de acuerdo con los requerimientos del contrato.

- h. La empresa contratista deberá acoger las normas de seguridad establecidas por la Embajada.
- i. La empresa contratista no permitirá a su personal el uso de cadenas, anillos, relojes y/o pulseras durante la ejecución de los trabajos.
- j. Está prohibido fumar en el lugar de trabajo, sólo deberán hacerlo en las áreas designadas para este fin.
- k. La empresa contratista deberá reportar cualquier accidente que se presente al COR quien transmitirá la información al POSHO o al Coordinador de Seguridad y Salud en el Trabajo de la Embajada.

## 2. Barricadas y Cerramientos

- a. El contratista deberá instalar barricadas provisionales y señales de advertencia con el fin de mantener un camino seguro y accesible para los peatones, incluidos aquellos con discapacidad, a fin de evitar accidentes a terceros. Las barricadas y señales alertan a las demás personas sobre los peligros generados por las actividades propias del proyecto y también deben usarse para controlar el tráfico vehicular alrededor del sitio de trabajo.
- b. El contratista deberá instalar y mantener durante la ejecución del proyecto barricadas tales como cercas, conos, cintas de precaución, rampas, aceras provisionales que cumplan con los códigos de acceso y regulaciones.
- c. El contratista deberá asegurar que no se almacenen materiales de construcción en las áreas destinadas para desplazamientos peatonales y/o vehiculares.
- d. Mantendrá las barricadas y cerramientos en condiciones seguras, ordenadas y limpias.

## 3. Requisitos de Elementos de Protección Personal:

El personal contratista deberá usar los Elementos de Protección Personal (EPP) requeridos y específicos para las labores contratadas.

La empresa contratista está obligada a inspeccionar y a mantener el inventario suficiente para el reemplazo de EPP en caso de daño, deterioro o pérdida.

Los EPPs usados por el personal contratista deben cumplir con las especificaciones técnicas exigidas por la legislación colombiana y las normas internacionales que los regulen.

El personal contratista que para el desarrollo de la labor deba utilizar herramientas y objetos corto-punzantes deben ser portados en canguros multi-herramientas; bajo ninguna circunstancia pueden ser portados en bolsillos del uniforme.

En aquellas actividades en las que se requiera EPP certificado, éste debe contar con la certificación vigente.

La empresa contratista deberá enviar al COR registros firmados por los trabajadores de la entrega de EPP.

## 4. Requisitos Inspecciones de Seguridad

Todas las herramientas, equipos y/o maquinaria que van a ser utilizados en la ejecución de la tarea contratada deben ser inspeccionados por una persona competente antes de iniciar el proyecto.

El COR y/o Representantes de Seguridad y Salud en el Trabajo de la Embajada podrán inspeccionar los equipos, herramientas y/o maquinaria de la empresa contratista en el momento que lo considere necesario y podrá solicitar su cambio si así lo considera.

## 5. Requisitos Herramientas Manuales y de Potencia

El contratista deberá asegurar que todas las herramientas y equipos utilizadas por sus trabajadores son seguras. Todas las herramientas deberán inspeccionarse periódicamente y mantenidas en buenas condiciones de acuerdo con las especificaciones del fabricante.

El contratista deberá asegurar que las herramientas son utilizadas para los fines que fueron creadas.

## 6. Requisitos Respuesta ante Emergencia:

En caso de que se presente una emergencia en las instalaciones de la Embajada, durante la ejecución de la labor contratada, el personal contratista deberá acatar las órdenes dadas por el representante/escolta que se encuentre supervisando el trabajo, por los brigadista y/o el personal de seguridad. Seguir instrucciones dadas por RSO.

La empresa contratista no podrá obstruir equipos de respuesta ante emergencia tales como botiquines, extintores, gabinetes contra incendio, desfibriladores, camillas, estaciones lavaojos, o señalización de seguridad.

## 7. Requisitos Tareas de Alto Riesgo:

La empresa contratista deberá presentar los certificados de entrenamiento de cada persona que ejecutará la tarea. Estos certificados deben ser enviados antes de iniciar la ejecución del proyecto.

La empresa contratista deberá elaborar un permiso de trabajo específicamente para dicha tarea y debe ser proporcionado al COR antes de la iniciación de la labor.

La empresa contratista deberá enviar el Análisis de Riesgo de la tarea en un plazo máximo de ocho días hábiles antes de la iniciación del trabajo. El POSHO o representante de Seguridad y Salud en el Trabajo de la Embajada revisará el documento y hará las observaciones que considere pertinentes.

Durante la ejecución de actividades de alto riesgo siempre se debe contar con la presencia de un vigía que pueda dar aviso o primer auxilio en caso de emergencia.

## 8. Seguridad Eléctrica

El contratista deberá dar cumplimiento total a la normatividad local y las políticas de la Embajada relacionadas con prácticas seguras de trabajo eléctrico y trabajo des-energizado para prevenir cualquier incidente que pueda impactar la salud del personal y/o los sistemas eléctricos de la Embajada o sus propiedades residenciales.

Es política de la Embajada de Estados Unidos, que las partes energizadas, usualmente llamadas “vivas”, a las cuales se vean expuestos empleados o contratistas, sean desenergizadas antes de que cualquier persona trabaje en o cerca de ellas. Si desenergizarlas produce riesgos adicionales o la desenergización no es posible, debe comunicarse con su

punto de contacto de la Embajada para reportar dicha situación antes de realizar el trabajo. La inconveniencia no se considera razón aceptable para trabajar en circuitos o partes energizadas.

Todo el personal que realice trabajo eléctrico deberá estar lo suficientemente entrenado y se debe ser una persona competente para poder ejecutar el trabajo.

El contratista deberá identificar cualquier posible fuente de energía eléctrica que pueda causar muerte, lesiones o daños físicos graves.

Deberá asegurarse que todo el trabajo se realice de acuerdo con la normatividad local y los estándares americanos.

El contratista debe proporcionar los equipos y herramientas apropiados para la labor contratada dando cumplimiento con los requerimientos del contrato.

Durante la ejecución de trabajo en el sistema eléctrico, el personal contratista debe retirarse joyas conductoras tales como relojes, anillos, cadenas y/o pulseras.

Se deben utilizar escaleras no conductivas (fibra de vidrio) para trabajos eléctricos o cerca de peligros eléctricos.

## 9. Requisitos Trabajo en Alturas:

Todo trabajo que se realice a más de 1.50 mts (5ft) se considera trabajo en alturas, por lo tanto el contratista deberá dar estricto cumplimiento a la Resolución 1409/2012:

Todo equipo de trabajo en alturas debe cumplir, como mínimo, la norma ANSI Z359.1 o estándares europeos homólogos.

Todo personal contratista que utilice equipos para trabajos en alturas deberá acatar las instrucciones y advertencias que traen dichos equipos.

El personal contratista no utilizará como punto de anclaje para trabajo en alturas escaleras, tubería o soportes de tubería.

Si un punto de anclaje no ofrece la resistencia recomendada para protección contra caídas (5000 lbs), la empresa contratista deberá suministrar equipos de protección para alturas con amortiguadores que permitan disminuir la fuerza del impacto.

Están prohibidos los andamios de tijera, sólo se deben utilizar andamios modulares debidamente certificados.

Utilice escaleras dieléctricas para trabajos con electricidad y áreas con influencia eléctrica.

Está prohibido pararse en los dos peldaños más altos de una escalera.

Todo el personal que realice trabajos en alturas deberá utilizar como mínimo las siguientes elementos de protección personal: casco con resistencia y absorción anti-impactos, según la necesidad podrán ser dieléctrico, con barbuquejo y cuatro puntos de apoyo, gafas de seguridad que protejan a los ojos de impacto, con protección para rayos UV y deslumbramientos; protección auditiva si es necesaria, guantes antideslizantes, flexibles de alta resistencia a la abrasión, botas antideslizantes con punteras reforzada, ropa de trabajo de acuerdo a las condiciones climáticas y de los factores de riesgo y un arnés integral o de cuerpo completo.

La empresa contratista debe enviar al COR, en los próximos 8 días hábiles los certificados de capacitación y el entrenamiento de todos los trabajadores que realizarán trabajos en alturas. El certificado debe cumplir con lo establecido en la resolución 3673/ 2008. El certificado de reentrenamiento debe proporcionarse, por lo menos una vez al año como lo establece la legislación.

## 10. Requisitos de Seguridad para Andamios

El contratista es responsable de probar condiciones seguras al usar, montar y desmontar andamios.

Los andamios deberán ser armados y desmontados por trabajadores competentes, bajo la supervisión de supervisor experto y con experiencia.

Los andamios deberán ser armados en una superficie rígida, capaz de soportar la carga máxima prevista sin asentamiento ni desplazamiento.

Asegúrese de que el andamio esté equipado con barandas y rodapiés en todos los lados abiertos y en los extremos de plataformas de cuatro a diez pies de altura.

Proporcione una escalera de acceso o un acceso seguro equivalente.

Los andamios soportados con una relación entre la altura y el ancho de la base de más de cuatro a uno (4:1) deberán ser asegurados para que no se inclinen, por medios de sujeción, amarre o medios equivalentes.

## 11. Requisitos para el Manejo de Sustancia Químicas:

El contratista deberá cumplir con las especificaciones que la ley local y estándares Americanos exigen para su almacenamiento, manipulación y transporte.

La empresa contratista es responsable de verificar el manejo correcto de cada producto tales como: almacenamiento, rotulación, EPP requerido, disposición final de los residuos generados dando cumplimiento con la normatividad, cuidado del medio ambiente.

El contratista deberá tener a la mano copia de las hojas de seguridad (SDS) de cada uno de los productos que se utilizaran en las instalaciones de la Embajada.

Reenviará copia de las Hojas de seguridad al COR para su revisión.

Usará y almacenará todos los productos químicos peligrosos que se utilizarán en las instalaciones en contenedores aprobados.

## 12. Requisitos para Izaje de cargas, uso de grúas o brazos articulados:

La empresa contratista deberá enviar al COR los certificados (avalado por la ONAC) de la maquinaria empleada para la prestación del servicio (Incluye montacargas y camiones grúa) y los documentos de estos vehículos (SOAT, tarjeta de propiedad y revisión técnico mecánica si aplica).

La empresa contratista deberá enviar al COR los certificados (avalado por la ONAC) de las eslingas, guayas, cadenas, grilletes u otros elementos empleados para el izaje de cargas.

La empresa contratista deberá enviar al COR las certificaciones de entrenamiento y/o avales de todo el personal que estará involucrada en la tarea.

La empresa contratista deberá enviar al COR el programa de mantenimiento e inspecciones que se tengan de los equipos y la maquinaria.

La empresa contratista deberá enviar al COR el procedimiento del cargue y descargue.

La empresa contratista deberá realizar un plan de izaje para garantizar la capacidad de la grúa o brazo con relación a su carga.

### 13. Requisitos de Seguridad para Soldadura

Antes de realizar actividades de corte o la soldadura, el COR inspeccionará el área para autorizar la operación con el fin de reducir el potencial de generar una ignición no controlada de materiales.

El contratista deberá obtener un permiso de trabajo en caliente a través del POSHO o el Coordinador de seguridad y Salud antes de iniciar la tarea de trabajo en caliente dentro de las instalaciones que están siendo ocupadas, a 40 pies de un edificio o en áreas con riesgo potencial como un tanque de almacenamiento de combustible y espacios confinados, independientemente de la ubicación.

El contratista deberá instalar cerramiento en el área de trabajo de acuerdo con la tarea a ejecutar, para proteger a peatones. Este cerramiento debe cumplir con los estándares de OSHA y las políticas de trabajo en caliente de la Embajada.

Se deberá mantener un equipo adecuado y accesible para extinción de incendios en el área de trabajo.

El corte y la soldadura se deben realizar en áreas que son o han sido hechas a prueba de fuego. Cuando el trabajo no se pueda mover de manera práctica, el área debe estar segura retirando los combustibles o protegiendo los combustibles de las fuentes de ignición.

El contratista deberá asegurarse de que todos los operadores y ayudantes del soldador, expuestos al peligro, usen el equipo de protección personal de soldadura adecuado.

### 14. Requisitos Seguridad Vial:

El vehículo debe contar con los elementos básicos de atención de emergencias. NTC 4532.

Las camionetas y vehículos pesados deben contar con pito y sensor de reversa.

La empresa contratista deberá enviar al COR los documentos de los vehículos (SOAT, tarjeta de propiedad y revisión técnico mecánica si aplica).

### 15. Requisitos para trabajos en espacios confinados

Para cualquier trabajo que se deba realizar en un espacio confinado, debe consultar con la Oficina de Seguridad y Salud para identificar y cumplir con todos los requisitos obligatorios establecidos por SHEM.

### 16. Requisitos Corte y Remoción de árboles

Siempre asuma que los cables eléctricos están energizados.

Comuníquese con la compañía de servicios para asesorarse acerca de cómo desconectar y hacer contacto a tierra o aislar los cables de las líneas eléctricas.

Todos los trabajos de corte y remoción de árboles dentro de un mínimo de 10 pies (3 metros) de las líneas eléctricas, deben hacerse por podadores capacitados y experimentados en corte de árboles cerca de las líneas. Un segundo podador de árbol es requerido dentro de una distancia de comunicación con voz normal.

Podadores de árboles, de cortes de línea, deben de estar conscientes y mantener una distancia apropiada mínima cuando trabajen alrededor de cables de alta tensión energizados.

Use extrema cautela cuando mueva las escaleras y equipos alrededor de árboles caídos y cables de alta tensión.

Manténgase alerta en todo momento.

No recorte árboles en condiciones de clima peligroso.

Lleve a cabo una evaluación de los peligros del área de trabajo antes de comenzar a trabajar.

Elimine o disminuya la exposición a peligros en el árbol y en las áreas alrededor.

Operadores de sierra de cadena y otros equipos deberán ser capacitados y mantener el equipo apropiadamente.

Use el equipo de protección de seguridad personal tales como guantes, gafas de seguridad, casco con barbuquejo, protección para los oídos, etc., según recomendaciones en el manual de operación del fabricante.

Determine la dirección de la caída del árbol. Señale inclinaciones hacia al frente, inclinaciones hacia atrás e inclinaciones hacia los lados.

Determine la cantidad apropiada de articulaciones en el árbol para poder guiar la caída del árbol con seguridad.

Provea un camino de retirada a un lugar seguro.

Inspeccione la estabilidad y la fuerza de las ramas del árbol antes de subirse. Podadores de árboles trabajando en la parte alta deben usar un equipo de protección contra caídas.

No suba con herramientas en las manos.

Si árboles rotos están en presión, determine la dirección de la presión y haga cortes pequeños para liberarla.

Use cuidado extremo cuando tale un árbol que no ha caído completamente al suelo y está recostado contra otro árbol.

Nunca de la espalda a un árbol caído.

Esté alerta y evite que objetos revoten de un árbol cuando cae.

## 17. Covid-19

El contratista deberá seguir los lineamientos y protocolos establecidos por el Gobierno Colombiano, así como los emitidos por el Centro de Control y Prevención de Enfermedades (Centers for Disease Control and Prevention – CDC por sus siglas en inglés) para prevenir la propagación del Covid-19 y de esta manera garantizar la salud y la seguridad tanto del personal contratista como del personal de la Misión de la Embajada de Estados Unidos.

## Notas Adicionales

El COR de la Embajada trabajará directamente con el contratista para garantizar que todos los requerimientos de seguridad se cumplan como se describen en este documento y, en caso de que se requiera, el COR le reportará al POSHO o al Coordinador de Seguridad y Salud en el Trabajo de la Embajada sobre cualquier deficiencia identificada antes o durante la ejecución del proyecto.

En caso de que el COR identifique un acto o una condición insegura que pueda afectar significativamente la salud o la seguridad del personal de la Embajada, contratistas, subcontratistas, terceros o a la propiedad del gobierno, la operación puede ser suspendida por el COR hasta que la condición sea corregida. Si aparecen diferentes condiciones durante el proyecto, el COR puede solicitarle requisitos de seguridad adicionales al contratista.

El COR puede compartir información relacionada con seguridad con el POSHO o el Coordinador de Seguridad y Salud para garantizar la seguridad del personal y la conservación de la propiedad.



## Permiso de trabajo en caliente

### Pautas e instrucciones

Siempre que se deban realizar trabajos de soldaduras o cortes en zonas que no están específicamente diseñadas para este tipo de trabajo; el área debe ser inspeccionada y se debe otorgar una autorización por escrito por parte de la persona encargada del programa de trabajo en caliente. Un permiso de trabajo se define como: (1) Cualquier operación o equipo que produzca llama o que pueda ser una fuente de ignición de gases y vapores inflamables al producir temperaturas superficiales superiores a 302°F (150°C). (2) Cualquier mantenimiento o trabajo de construcción que, como resultado de la fricción, pueda generar una chispa (pulir, astillar, perforar, martillar o cualquier flujo de material que pueda crear electricidad estática).

**Al firmar este permiso, debe leer y cumplir con las siguientes instrucciones para prevenir incendios y otros peligros durante las operaciones de soldadura.**

1. Asegúrese que el sistema de rociadores esté en funcionamiento.
2. Barra pisos y déjelos limpios.
3. Moje los pisos combustibles o cúbralos con laminas de metal u otros materiales no combustibles.
4. Retire todos los líquidos inflamables y depósitos de aceite del área de trabajo.
5. Mueva el material combustible a una distancia mínima de 35 pies del área de trabajo.
6. Coloque al personal de guardia contra incendios con una manguera pequeña o un extintor para sofocar los incendios iniciados por chispas.
7. No trabaje en paredes o techos que contengan aislamiento combustible.
8. Este permiso de trabajo no es válido para espacios confinados y tanques. Consulte los requisitos en la sección 9.1 y 10.1 de la guía de Recursos de Gestión de Seguridad, Salud Laboral y Medio Ambiente.
9. Retire el material combustible de los ductos y equipos cerrados.
10. El personal de guardia contra incendios debe permanecer en el área de trabajo al menos media hora después de que el trabajo haya sido completado para extinguir cualquier incendio y para asegurar que no haya fuego en las áreas adyacentes.

**Se debe mantener una copia de este Permiso de Trabajo en Caliente en los archivos de POSHO**



Departamento de Estado de los Estados Unidos

Gestión de Seguridad, Salud y Ambiental

**AUTORIZACION DE TRABAJOS DE MANTENIMIENTO**

*(Este permiso es válido solo para el área, el trabajo aquí indicado, y solo en la fecha de emisión)*

**Información de Emisión de Permisos**

|                                                                                                                                  |                        |
|----------------------------------------------------------------------------------------------------------------------------------|------------------------|
| Fecha (mm-dd-aaaa)                                                                                                               |                        |
| Permiso emitido por                                                                                                              | Fecha (mm-dd-aaaa)     |
| <b>Información de Asignación de Trabajo</b>                                                                                      |                        |
| Tiempo de inicio                                                                                                                 | Tiempo de finalización |
| Nombre del edificio y dirección                                                                                                  |                        |
| Número de piso y ubicación en el piso                                                                                            |                        |
| Naturaleza del trabajo                                                                                                           |                        |
| <b>Información del trabajador</b>                                                                                                |                        |
| Nombre y cargo del trabajador                                                                                                    |                        |
| Dirección del trabajado                                                                                                          |                        |
| <i>Acepto seguir las pautas de seguridad y las instrucciones necesarias para completar este trabajo de manera segura.</i>        |                        |
| Firma del trabajador                                                                                                             | Fecha (mm-dd-aaaa)     |
| <b>Información del supervisor</b>                                                                                                |                        |
| Supervisor – Nombre y cargo                                                                                                      |                        |
| <i>Acepto hacer cumplir las pautas de seguridad y las instrucciones necesarias para completar este trabajo de manera segura.</i> |                        |
| Firma del supervisor                                                                                                             | Fecha (dd-mm-aaaa)     |
| Se debe mantener una copia de este Permiso de Trabajo en Caliente en los archivos de POSHO                                       |                        |

DS-1939  
05-2017

U.S. DEPARTMENT of STATE

**U.S. Embassy in Colombia**

Carrera 45 # 24B- 27 - (+571) 275.2000 - Bogotá D.C. – Colombia